

Children and Families Act 2014

8.1

13 Control of expert evidence, and of assessments, in children proceedings

- (1) A person may not without the permission of the court instruct a person to provide expert evidence for use in children proceedings.
- (2) Where in contravention of subsection (1) a person is instructed to provide expert evidence, evidence resulting from the instructions is inadmissible in children proceedings unless the court rules that it is admissible.
- (3) A person may not without the permission of the court cause a child to be medically or psychiatrically examined or otherwise assessed for the purposes of the provision of expert evidence in children proceedings.
- (4) Where in contravention of subsection (3) a child is medically or psychiatrically examined or otherwise assessed, evidence resulting from the examination or other assessment is inadmissible in children proceedings unless the court rules that it is admissible.
- (5) In children proceedings, a person may not without the permission of the court put expert evidence (in any form) before the court.
- (6) The court may give permission as mentioned in subsection (1), (3) or (5) only if the court is of the opinion that the expert evidence is necessary to assist the court to resolve the proceedings justly.
- (7) When deciding whether to give permission as mentioned in subsection (1), (3) or (5) the court is to have regard in particular to –
 - (a) any impact which giving permission would be likely to have on the welfare of the children concerned, including in the case of permission as mentioned in subsection (3) any impact which any examination or other assessment would be likely to have on the welfare of the child who would be examined or otherwise assessed,
 - (b) the issues to which the expert evidence would relate,
 - (c) the questions which the court would require the expert to answer,
 - (d) what other expert evidence is available (whether obtained before or after the start of proceedings),
 - (e) whether evidence could be given by another person on the matters on which the expert would give evidence,
 - (f) the impact which giving permission would be likely to have on the timetable for, and duration and conduct of, the proceedings,
 - (g) the cost of the expert evidence, and
 - (h) any matters prescribed by Family Procedure Rules.
- (8) References in this section to providing expert evidence, or to putting expert evidence before a court, do not include references to –
 - (a) the provision or giving of evidence –
 - (i) by a person who is a member of the staff of a local authority or of an authorised applicant,
 - (ii) in proceedings to which the authority or authorised applicant is a party, and
 - (iii) in the course of the person's work for the authority or authorised applicant,
 - (b) the provision or giving of evidence –
 - (i) by a person within a description prescribed for the purposes of subsection (1) of section 94 of the Adoption and Children Act 2002 (suitability for adoption etc.), and
 - (ii) about the matters mentioned in that subsection,
 - (c) the provision or giving of evidence by an officer of the Children and Family Court Advisory and Support Service when acting in that capacity, or
 - (d) the provision or giving of evidence by a Welsh family proceedings officer (as defined by section 35(4) of the Children Act 2004) when acting in that capacity.
- (9) In this section –

‘authorised applicant’ means –

 - (a) the National Society for the Prevention of Cruelty to Children, or

- (b) a person authorised by an order under section 31 of the Children Act 1989 to bring proceedings under that section;

‘child’ means a person under the age of 18;

‘children proceedings’ has such meaning as may be prescribed by Family Procedure Rules;

‘the court’, in relation to any children proceedings, means the court in which the proceedings are taking place;

‘local authority’ –

- (a) in relation to England means –

- (i) a county council,
- (ii) a district council for an area for which there is no county council,
- (iii) a London borough council,
- (iv) the Common Council of the City of London, or
- (v) the Council of the Isles of Scilly, and

- (b) in relation to Wales means a county council or a county borough council.

(10) The preceding provisions of this section are without prejudice to sections 75 and 76 of the Courts Act 2003 (power to make Family Procedure Rules).

8.1[1]

FPR 2010, Pt 25 and s 13—This section should be read alongside FPR 2010, Pt 25. Section 13 applies only to children proceedings, whereas Pt 25 and its accompanying practice directions apply to all family proceedings. The law relating to expert evidence is considered further in Part VIII, ‘Evidence in Family Proceedings’ – para **8.32** ‘expert evidence for use in children proceedings’ (s 13(1))—Section 13(1) prevents a party from instructing an expert to provide evidence in children proceedings other than with permission of the court. Note in particular the *President’s Memorandum: Experts in the Family Court* (4 October 2021) – see para **5.129**.

The importance of following the procedural requirements for seeking expert evidence was emphasised in *Re C (A Child) (Procedural Requirements of a Part 25 Application)* [2015] EWCA Civ 539, [2016] 1 FLR 707 at [24]ff. ‘**necessary to assist the court to resolve the proceedings justly**’ (s 13(6))—It is important to emphasise that the test is not simply whether expert evidence is ‘necessary’ but whether it is ‘necessary to assist the court to resolve the proceedings justly’. There are five elements, not one: ‘necessary’, ‘assist’, ‘resolve’, ‘the proceedings’ (ie these particular proceedings), and ‘justly’. The word ‘necessary’ must be considered in the context of the wording of the whole sentence.

Note also the similar but different wording in ChA 1989, s 32(5): the court may only extend the timetable beyond 26 weeks in Part IV proceedings if it considers that the extension ‘is necessary to enable the court to resolve the proceedings justly’. The difference is potentially important if, as is suggested, ‘enable’ connotes something even more stringent than ‘assist’. If so, any late application for permission to instruct an expert in care proceedings that would require such an extension of the timetable will have to satisfy the court not only that the evidence is necessary to ‘assist’ it to resolve the proceedings justly but also that it is necessary to ‘enable’ it to do so.

The epithet ‘necessary’ is used for other family proceedings. Alongside CFA 2014, s 13, FPR 2010, r 25.4(3) has been amended accordingly. By contrast, in civil proceedings, the rule is that permission for opinion evidence depends on its being ‘reasonably required’ (CPR 1998, r 35.1) by the court. Thus, the civil test will apply to family proceedings governed by the CPR 1998, such as TOLATA proceedings under the I(PFD)A 1975 and proceedings under the High Court’s inherent jurisdiction concerning a vulnerable adult (see the President’s Memorandum, referred to above).

In relation to the meaning of the word ‘necessary’, a word of common English usage, Munby P stated in *Re H-L (Expert Evidence: Test for Permission)* [2013] EWCA Civ 655, [2013] 2 FLR 1434 at [3] that ‘this court said it “has a meaning lying somewhere between ‘indispensable’ on the one hand and ‘useful’, ‘reasonable’ or ‘desirable’ on the other hand”, having “the connotation of the imperative, what is demanded rather than what is merely optional or reasonable or desirable”. In my judgment, that is the meaning, the connotation, the word “necessary” has in r 25.1 [the relevant rule before the CFA 2014, s 13]’.

Impartiality—If a party adduces a report which, on its face, does not comply with the recognised duties of an expert witness to be independent and impartial, the court may exclude the evidence as inadmissible (see *Kennedy v Cordia (Services) LLP (Scotland)* [2016] UKSC 6 at [51] and the President’s Memorandum, referred to above).

Duties to the court—FPR PD25B sets out the duties of the expert to the court. PD25B, para 4.1(b) requires an expert to comply with the standards set out in the Annex. These include requirements to have been active in the area of work; to have sufficient experience of the issues; to have familiarity with the breadth of current practice or opinion; and if their professional practice is regulated by a UK statutory body (see Table 1) that they are in possession of a current licence, are up to date with CPD and have received Page 3 of 3 appropriate training on the role of an expert in the family courts.

Child abduction proceedings—Section 13(6) applies to control of expert evidence in child abduction proceedings (*Re C (A Child) (Child Abduction: Parent’s Refusal to Return with Child)* [2021] EWCA Civ 1216, [2023] 2 FLR 1171 at [54]; and see FPR 2010, r 12.1(1)(e) which includes child abduction cases as ‘children proceedings’).

Psychologists—Certain categories of psychologist, for example clinical psychologists, have a protected title which may only be used by those who are validly registered under regulations. The generic label ‘psychologist’ is not protected and may be used by any individual, whether registered or not. The court must have ‘its eyes wide

open to the need for clarity over the expertise of those who present as a psychologist, but whom are neither registered nor chartered' (*Re C (Parental Alienation: Instruction of Expert)* [2023] EWHC 345 (Fam)). The Family Justice Council has issued guidance jointly with the British Psychological Society on providing expert reports in the family courts – see www.judiciary.uk/wp-content/uploads/2016/05/psychologists-as-expert-witnesses.pdf.
Mobile phone extraction—In *P, H-L (Children) (Mobile Phone Extraction)* [2023] EWCA Civ 206, [2023] 2 FLR 528 guidance was given on how third-party rights should be protected when mobile phones have been interrogated and investigated by experts.

8.1[2]

Legal aid and expert evidence—The Civil Legal Aid (Remuneration) Regulations 2013 introduced new rates for payment for expert evidence in legal aid cases. See also authority for payment for experts in legal aid cases in *Guidance on authorities and legal aid for cases in courts outside England and Wales* (August 2018, Legal Aid Agency; full reference and link in Pt IV under Civil Legal Aid (Remuneration) Regulations 2013).

'whether to give permission'—Section 13(7) sets out a checklist of factors that the court is to have particular regard to when deciding whether to give leave for a party to instruct an expert in children's proceedings. When considering whether to give leave for a medical or psychiatric examination or other assessment following the making of an interim care or interim supervision order, there is a different checklist of factors that the court must consider in ChA 1989, s38 (7B).

Expert evidence from social workers etc (s 13(8))—This section should not be read as meaning that local authority social workers cannot give opinion evidence, but that restrictions on the instruction of experts in children proceedings do not apply to them. Such witnesses give evidence, even though of opinion, in the capacity of working for the applicant local authority or because directed by the court, and they do not therefore need to seek permission etc. Similarly, the restrictions on instructing expert evidence do not apply to the evidence of the Cafcass officer/Welsh family proceedings officer within the proceedings – s 13(8)(c) and (d).

Suspected Inflicted Head Injury Service—This was piloted in Manchester, Sheffield and Birmingham, and is currently being evaluated. It was intended to provide an early assessment of children suspected of inflicted head injuries and the streamlining of the clinical reporting process.

Civil Evidence Act 1968

8.2

For commentary on evidence, see **EVIDENCE IN FAMILY PROCEEDINGS**, paras 8.26ff.

PART II MISCELLANEOUS AND GENERAL *Convictions, etc as evidence in civil proceedings*

8.3

11 Convictions as evidence in civil proceedings

(1) In any civil proceedings the fact that a person has been convicted of an offence by or before any court in the United Kingdom or of a service offence (anywhere) shall (subject to subsection (3) below) be admissible in evidence for the purpose of proving, where to do so is relevant to any issue in those proceedings, that he committed that offence, whether he was so convicted upon a plea of guilty or otherwise and whether or not he is a party to the civil proceedings; but no conviction other than a subsisting one shall be admissible in evidence by virtue of this section.

(2) In any civil proceedings in which by virtue of this section a person is proved to have been convicted of an offence by or before any court in the United Kingdom or of a service offence –

- (a) he shall be taken to have committed that offence unless the contrary is proved; and
- (b) without prejudice to the reception of any other admissible evidence for the purpose of identifying the facts on which the conviction was based, the contents of any document which is admissible as evidence of the conviction, and the contents of the information, complaint, indictment or charge-sheet on which the person in question was convicted, shall be admissible in evidence for that purpose.

(3) Nothing in this section shall prejudice the operation of section 13 of this Act or any other enactment whereby a conviction or a finding of fact in any criminal proceedings is for the purposes of any other proceedings made conclusive evidence of any fact.

(4) Where in any civil proceedings the contents of any document are admissible in evidence by virtue of subsection (2) above, a copy of that document, or of the material part thereof, purporting to be certified or otherwise authenticated by or on behalf of the court or authority having custody of that document shall be admissible in evidence and shall be taken to be a true copy of that document or part unless the contrary is shown.

(5) Nothing in any of the following enactments, that is to say –

- (a) section 82 of the Sentencing Code (under which a conviction leading to . . . discharge is to be disregarded except as therein mentioned);
- (aa) section 187 of the Armed Forces Act 2006 (which makes similar provision in respect of service convictions);
- (b) section 9 of the Criminal Justice (Scotland) Act 1949 (which makes similar provision in respect of convictions on indictment in Scotland); and
- (c) section 8 of the Probation Act (Northern Ireland) 1950 (which corresponds to the said section 12) or any corresponding enactment of the Parliament of Northern Ireland for the time being in force,

shall affect the operation of this section; and for the purposes of this section any order made by a court of summary jurisdiction in Scotland under section 1 or section 2 of the said Act of 1949 shall be treated as a conviction.

(7) In this section –

‘service offence’ has the same meaning as in the Armed Forces Act 2006;

‘conviction’ includes anything that under section 376(1) and (2) of that Act is to be treated as a conviction, and ‘convicted’ is to be read accordingly.

8.3[1]

Amendments—Criminal Justice Act 1991; Armed Forces Act 2006 (sub-s (7): substituted, for sub-s (6) as originally enacted, by the Armed Forces Act 2006, s 378(1), Sch 16, para 51(1), (5)); Powers of Criminal Courts (Sentencing) Act 2000; Sentencing Act 2020.

8.4

12 Findings of adultery and paternity as evidence in civil proceedings

(1) In any civil proceedings –

- (a) the fact that a person has been found guilty of adultery in any matrimonial proceedings; and
- (b) the fact that a person has been found to be the father of a child in relevant proceedings before any court in England and Wales or Northern Ireland or has been adjudged to be the father of a child in affiliation proceedings before any court in the United Kingdom;

shall (subject to subsection (3) below) be admissible in evidence for the purpose of proving, where to do so is relevant to any issue in those civil proceedings, that he committed the adultery to which the finding relates or, as the case may be, is (or was) the father of that child, whether or not he offered any defence to the allegation of adultery or paternity and whether or not he is a party to the civil proceedings; but no finding or adjudication other than a subsisting one shall be admissible in evidence by virtue of this section.

(2) In any civil proceedings in which by virtue of this section a person is proved to have been found guilty of adultery as mentioned in subsection (1)(a) above or to have been found or adjudged to be the father of a child as mentioned in subsection (1)(b) above –

- (a) he shall be taken to have committed the adultery to which the finding relates or, as the case may be, to be (or have been) the father of that child, unless the contrary is proved; and
- (b) without prejudice to the reception of any other admissible evidence for the purpose of identifying the facts on which the finding or adjudication was based, the contents of any document which was before the court, or which contains any pronouncement of the court, in the other proceedings in question shall be admissible in evidence for that purpose.

(3) Nothing in this section shall prejudice the operation of any enactment whereby a finding of fact in any matrimonial or affiliation proceedings is for the purposes of any other proceedings made conclusive evidence of any fact.

(4) Subsection (4) of section 11 of this Act shall apply for the purposes of this section as if the reference to subsection (2) were a reference to subsection (2) of this section.

(5) In this section –

‘matrimonial proceedings’ means any matrimonial cause in the High Court or family court in England and Wales or in the High Court in Northern Ireland, any consistorial action in Scotland, or any appeal arising out of any such cause or action;

‘relevant proceedings’ means –

- (a) . . .
- (b) proceedings under the Children Act 1989;
- (c) proceedings which would have been relevant proceedings for the purposes of this section in the form in which it was in force before the passing of the Children Act 1989;
- (d) . . .;
- (e) proceedings which are relevant proceedings as defined in section 8(5) of the Civil Evidence Act (Northern Ireland) 1971.

‘affiliation proceedings’ means, in relation to Scotland, any action of affiliation and aliment; and in this subsection ‘consistorial action’ does not include an action of aliment only between husband and wife raised in the Court of Session or an action of interim aliment raised in the sheriff court.

8.4[1]

Amendments—Family Law Reform Act 1987; Courts and Legal Services Act 1990; SI 1995/756; Child Support, Pensions and Social Security Act 2000; Crime and Courts Act 2013; SI 2015/914; Child Support, Pensions and Social Security Act 2000.

Privilege

8.5

14 Privilege against incrimination of self or spouse or civil partner

(1) The right of a person in any legal proceedings other than criminal proceedings to refuse to answer any question or produce any document or thing if to do so would tend to expose that person to proceedings for an offence or for the recovery of a penalty –

- (a) shall apply only as regards criminal offences under the law of any part of the United Kingdom and penalties provided for by such law; and
- (b) shall include a like right to refuse to answer any question or produce any document or thing if to do so would tend to expose the spouse or civil partner of that person to proceedings for any such criminal offence or for the recovery of any such penalty.

(2) In so far as any existing enactment conferring (in whatever words) powers of inspection or investigation confers on a person (in whatever words) any right otherwise than in criminal proceedings to refuse to answer any question or give any evidence tending to incriminate that person, subsection (1) above shall apply to that right as it applies to the right described in that subsection; and every such existing enactment shall be construed accordingly.

(3) In so far as any existing enactment provides (in whatever words) that in any proceedings other than criminal proceedings a person shall not be excused from answering any question or giving any evidence on the ground that to do so may incriminate that person, that enactment shall be construed as providing also that in such proceedings a person shall not be excused from answering any question or giving any evidence on the ground that to do so may incriminate the husband or wife of that person.

(4) Where any existing enactment (however worded) that –

- (a) confers powers of inspection or investigation; or
- (b) provides as mentioned in subsection (3) above,

further provides (in whatever words) that any answer or evidence given by a person shall not be admissible in evidence against that person in any proceedings or class of proceedings (however described, and whether criminal or not), that enactment shall be construed as providing also that any answer or evidence given by that person shall not be admissible in evidence against the husband or wife of that person in the proceedings or class of proceedings in question.

(5) In this section ‘existing enactment’ means any enactment passed before this Act; and the references to giving evidence are references to giving evidence in any manner, whether by furnishing information, making discovery, producing documents or otherwise.

8.5[1]

Amendment—Civil Partnership Act 2004.

8.6

16 Abolition of certain privileges

(1) The following rules of law are hereby abrogated except in relation to criminal proceedings, that is to say –

- (a) the rule whereby, in any legal proceedings, a person cannot be compelled to answer any question or produce any document or thing if to do so would tend to expose him to a forfeiture; and
- (b) the rule whereby, in any legal proceedings, a person other than a party to the proceedings cannot be compelled to produce any deed or other document relating to his title to any land.

(2) The rule of law whereby, in any civil proceedings, a party to the proceedings cannot be compelled to produce any document relating solely to his own case and in no way tending to impeach that case or support the case of any opposing party is hereby abrogated.

(3) Section 3 of the Evidence (Amendment) Act 1853 (which provides that a husband or wife shall not be compellable to disclose any communication made to him or her by his or her spouse during the marriage) shall cease to have effect except in relation to criminal proceedings.

(4) . . .

(5) A witness in any proceedings instituted in consequence of adultery, whether a party to the proceedings or not, shall not be excused from answering any question by reason that it tends to show that he or she has been guilty of adultery . . .

General

8.7

18 General interpretation and savings

(1) In this Act ‘civil proceedings’ includes, in addition to civil proceedings in any of the ordinary courts of law –

- (a) civil proceedings before any other tribunal, being proceedings in relation to which the strict rules of evidence apply; and
- (b) an arbitration or reference, whether under an enactment or not,

but does not include civil proceedings in relation to which the strict rules of evidence do not apply.

(2) In this Act –

‘court’ does not include a service court, and, in relation to an arbitration or reference, means the arbitrator or umpire and, in relation to proceedings before a tribunal (not being one of the ordinary courts of law), means the tribunal;

‘legal proceedings’ includes an arbitration or reference, whether under an enactment or not;

and for the avoidance of doubt it is hereby declared that in this Act, and in any amendment made by this Act in any other enactment, references to a person’s husband or wife do not include references to a person who is no longer married to that person.

(2A) In subsection (2) ‘service court’ means the Court Martial, the Summary Appeal Court, the Service Civilian Court, the Court Martial Appeal Court or the Supreme Court on an appeal brought from the Court Martial Appeal Court.

(3) Any reference in this Act to any other enactment is a reference thereto as amended, and includes a reference thereto as applied, by or under any other enactment.

(4) Nothing in this Act shall prejudice the operation of any enactment which provides (in whatever words) that any answer or evidence given by a person in specified circumstances shall not be admissible in evidence against him or some other person in any proceedings or class of proceedings (however described).

In this subsection the reference to giving evidence is a reference to giving evidence in any manner, whether by furnishing information, making discovery, producing documents or otherwise.

(5) Nothing in this Act shall prejudice –

- (a) any power of a court, in any legal proceedings, to exclude evidence (whether by preventing questions from being put or otherwise) at its discretion; or
- (b) the operation of any agreement (whenever made) between the parties to any legal proceedings as to the evidence which is to be admissible (whether generally or for any particular purpose) in those proceedings.

(6) It is hereby declared that where, by reason of any defect of speech or hearing from which he is suffering, a person called as a witness in any legal proceedings gives his evidence in writing or by signs, that evidence is to be treated for the purposes of this Act as being given orally.

8.7[1]

Amendments—Armed Forces Act 2006.

Civil Evidence Act 1972

8.8

For commentary on evidence, see **EVIDENCE IN FAMILY PROCEEDINGS**, paras **8.26ff**.

8.9

3 Admissibility of expert opinion and certain expressions of non-expert opinion

(1) Subject to any rules of court made in pursuance of this Act, where a person is called as a witness in any civil proceedings, his opinion on any relevant matter on which he is qualified to give expert evidence shall be admissible in evidence.

(2) It is hereby declared that where a person is called as a witness in any civil proceedings, a statement of opinion by him on any relevant matter on which he is not qualified to give expert evidence, if made as a way of conveying relevant facts personally perceived by him, is admissible as evidence of what he perceived.

(3) In this section ‘relevant matter’ includes an issue in the proceedings in question.

8.9[1]

There are the following source materials in relation to expert evidence in family proceedings:

- (i) the Civil Evidence Act 1972;
- (ii) the Children and Families Act 2014, s 13;
- (iii) FPR 2010, Pt 25;

For discussion generally about experts in family proceedings, see ‘Evidence in Family Proceedings’, at para **8.32**, below.

Civil Evidence Act 1995

8.10

For commentary on evidence, see **EVIDENCE IN FAMILY PROCEEDINGS**, paras **8.26ff**.

Admissibility of hearsay evidence

8.11

1 Admissibility of hearsay evidence

- (1) In civil proceedings evidence shall not be excluded on the ground that it is hearsay.
- (2) In this Act –
 - (a) ‘hearsay’ means a statement made otherwise than by a person while giving oral evidence in the proceedings which is tendered as evidence of the matters stated; and
 - (b) references to hearsay include hearsay of whatever degree.
- (3) Nothing in this Act affects the admissibility of evidence admissible apart from this section.
- (4) The provisions of sections 2 to 6 (safeguards and supplementary provisions relating to hearsay evidence) do not apply in relation to hearsay evidence admissible apart from this section, notwithstanding that it may also be admissible by virtue of this section.

Safeguards in relation to hearsay evidence

8.12

2 Notice of proposal to adduce hearsay evidence

- (1) A party proposing to adduce hearsay evidence in civil proceedings shall, subject to the following provisions of this section, give to the other party or parties to the proceedings –
 - (a) such notice (if any) of that fact, and
 - (b) on request, such particulars of or relating to the evidence,
 as is reasonable and practicable in the circumstances for the purpose of enabling him or them to deal with any matters arising from its being hearsay.
- (2) Provision may be made by rules of court –
 - (a) specifying classes of proceedings or evidence in relation to which subsection (1) does not apply, and
 - (b) as to the manner in which (including the time within which) the duties imposed by that subsection are to be complied with in the cases where it does apply.
- (3) Subsection (1) may also be excluded by agreement of the parties; and compliance with the duty to give notice may in any case be waived by the person to whom notice is required to be given.
- (4) A failure to comply with subsection (1), or with rules under subsection (2)(b), does not affect the admissibility of the evidence but may be taken into account by the court –
 - (a) in considering the exercise of its powers with respect to the course of proceedings and costs, and
 - (b) as a matter adversely affecting the weight to be given to the evidence in accordance with section 4.

8.13

3 Power to call witness for cross-examination on hearsay statement

Rules of court may provide that where a party to civil proceedings adduces hearsay evidence of a statement made by a person and does not call that person as a witness, any other party to the proceedings may, with the leave of the court, call that person as a witness and cross-examine him on the statement as if he had been called by the first-mentioned party and as if the hearsay statement were his evidence in chief.

8.14

4 Considerations relevant to weighing of hearsay evidence

- (1) In estimating the weight (if any) to be given to hearsay evidence in civil proceedings the court shall have regard to any circumstances from which any inference can reasonably be drawn as to the reliability or otherwise of the evidence.
- (2) Regard may be had, in particular, to the following –
 - (a) whether it would have been reasonable and practicable for the party by whom the evidence was adduced to have produced the maker of the original statement as a witness;

- (b) whether the original statement was made contemporaneously with the occurrence or existence of the matters stated;
- (c) whether the evidence involves multiple hearsay;
- (d) whether any person involved had any motive to conceal or misrepresent matters;
- (e) whether the original statement was an edited account, or was made in collaboration with another or for a particular purpose;
- (f) whether the circumstances in which the evidence is adduced as hearsay are such as to suggest an attempt to prevent proper evaluation of its weight.

Supplementary provisions as to hearsay evidence

8.15

5 Competence and credibility

(1) Hearsay evidence shall not be admitted in civil proceedings if or to the extent that it is shown to consist of, or to be proved by means of, a statement made by a person who at the time he made the statement was not competent as a witness.

For this purpose 'not competent as a witness' means suffering from such mental or physical infirmity, or lack of understanding, as would render a person incompetent as a witness in civil proceedings; but a child shall be treated as competent as a witness if he satisfies the requirements of section 96(2)(a) and (b) of the Children Act 1989 (conditions for reception of unsworn evidence of child).

(2) Where in civil proceedings hearsay evidence is adduced and the maker of the original statement, or of any statement relied upon to prove another statement, is not called as a witness –

- (a) evidence which if he had been so called would be admissible for the purpose of attacking or supporting his credibility as a witness is admissible for that purpose in the proceedings; and
- (b) evidence tending to prove that, whether before or after he made the statement, he made any other statement inconsistent with it is admissible for the purpose of showing that he had contradicted himself.

Provided that evidence may not be given of any matter of which, if he had been called as a witness and had denied that matter in cross-examination, evidence could not have been adduced by the cross-examining party.

8.16

6 Previous statements of witnesses

(1) Subject as follows, the provisions of this Act as to hearsay evidence in civil proceedings apply equally (but with any necessary modifications) in relation to a previous statement made by a person called as a witness in the proceedings.

(2) A party who has called or intends to call a person as a witness in civil proceedings may not in those proceedings adduce evidence of a previous statement made by that person, except –

- (a) with the leave of the court, or
- (b) for the purpose of rebutting a suggestion that his evidence has been fabricated.

This shall not be construed as preventing a witness statement (that is, a written statement of oral evidence which a party to the proceedings intends to lead) from being adopted by a witness in giving evidence or treated as his evidence.

(3) Where in the case of civil proceedings section 3, 4 or 5 of the Criminal Procedure Act 1865 applies, which make provision as to –

- (a) how far a witness may be discredited by the party producing him,
- (b) the proof of contradictory statements made by a witness, and
- (c) cross-examination as to previous statements in writing,

this Act does not authorise the adducing of evidence of a previous inconsistent or contradictory statement otherwise than in accordance with those sections.

This is without prejudice to any provision made by rules of court under section 3 above (power to call witness for cross-examination on hearsay statement).

(4) Nothing in this Act affects any of the rules of law as to the circumstances in which, where a person called as a witness in civil proceedings is cross-examined on a document used by him to refresh his memory, that document may be made evidence in the proceedings.

(5) Nothing in this section shall be construed as preventing a statement of any description referred to above from being admissible by virtue of section 1 as evidence of the matters stated.

8.17

7 Evidence formerly admissible at common law

(1) The common law rule effectively preserved by section 9(1) and (2)(a) of the Civil Evidence Act 1968 (admissibility of admissions adverse to a party) is superseded by the provisions of this Act.

(2) The common law rules effectively preserved by section 9(1) and (2)(b) to (d) of the Civil Evidence Act 1968, that is, any rule of law whereby in civil proceedings –

- (a) published works dealing with matters of a public nature (for example, histories, scientific works, dictionaries and maps) are admissible as evidence of facts of a public nature stated in them,
- (b) public documents (for example, public registers, and returns made under public authority with respect to matters of public interest) are admissible as evidence of facts stated in them, or
- (c) records (for example, the records of certain courts, treaties, Crown grants, pardons and commissions) are admissible as evidence of facts stated in them,

shall continue to have effect.

(3) The common law rules effectively preserved by section 9(3) and (4) of the Civil Evidence Act 1968, that is, any rule of law whereby in civil proceedings –

- (a) evidence of a person's reputation is admissible for the purpose of proving his good or bad character, or
- (b) evidence of reputation or family tradition is admissible –
 - (i) for the purpose of proving or disproving pedigree or the existence of a marriage, or
 - (ii) for the purpose of proving or disproving the existence of any public or general right or of identifying any person or thing,

shall continue to have effect in so far as they authorise the court to treat such evidence as proving or disproving that matter.

Where any such rule applies, reputation or family tradition shall be treated for the purposes of this Act as a fact and not as a statement or multiplicity of statements about the matter in question.

(4) The words in which a rule of law mentioned in this section is described are intended only to identify the rule and shall not be construed as altering it in any way.

Other matters

8.18

8 Proof of statements contained in documents

(1) Where a statement contained in a document is admissible as evidence in civil proceedings, it may be proved –

- (a) by the production of that document, or
- (b) whether or not that document is still in existence, by the production of a copy of that document or of the material part of it,

authenticated in such manner as the court may approve.

(2) It is immaterial for this purpose how many removes there are between a copy and the original.

8.19

9 Proof of records of business or public authority

(1) A document which is shown to form part of the records of a business or public authority may be received in evidence in civil proceedings without further proof.

(2) A document shall be taken to form part of the records of a business or public authority if there is produced to the court a certificate to that effect signed by an officer of the business or authority to which the records belong.

For this purpose –

- (a) a document purporting to be a certificate signed by an officer of a business or public authority shall be deemed to have been duly given by such an officer and signed by him; and

- (b) a certificate shall be treated as signed by a person if it purports to bear a facsimile of his signature.
- (3) The absence of an entry in the records of a business or public authority may be proved in civil proceedings by affidavit of an officer of the business or authority to which the records belong.
- (4) In this section –
- ‘records’ means records in whatever form;
 - ‘business’ includes any activity regularly carried on over a period of time, whether for profit or not, by any body (whether corporate or not) or by an individual;
 - ‘officer’ includes any person occupying a responsible position in relation to the relevant activities of the business or public authority or in relation to its records; and
 - ‘public authority’ includes any public or statutory undertaking, any government department and any person holding office under Her Majesty.
- (5) The court may, having regard to the circumstances of the case, direct that all or any of the above provisions of this section do not apply in relation to a particular document or record, or description of documents or records.

General

8.20

11 Meaning of ‘civil proceedings’

In this Act ‘civil proceedings’ means civil proceedings, before any tribunal, in relation to which the strict rules of evidence apply, whether as a matter of law or by agreement of the parties.

References to ‘the court’ and ‘rules of court’ shall be construed accordingly.

8.21

12 Provisions as to rules of court

(1) Any power to make rules of court regulating the practice or procedure of the court in relation to civil proceedings includes power to make such provision as may be necessary or expedient for carrying into effect the provisions of this Act.

(2) Any rules of court made for the purposes of this Act as it applies in relation to proceedings in the High Court apply, except in so far as their operation is excluded by agreement, to arbitration proceedings to which this Act applies, subject to such modifications as may be appropriate.

Any question arising as to what modifications are appropriate shall be determined, in default of agreement, by the arbitrator or umpire, as the case may be.

8.22

13 Interpretation

In this Act –

‘civil proceedings’ has the meaning given by section 11 and ‘court’ and ‘rules of court’ shall be construed in accordance with that section;

‘document’ means anything in which information of any description is recorded, and ‘copy’, in relation to a document, means anything onto which information recorded in the document has been copied, by whatever means and whether directly or indirectly;

‘hearsay’ shall be construed in accordance with section 1(2);

‘oral evidence’ includes evidence which, by reason of a defect of speech or hearing, a person called as a witness gives in writing or by signs;

‘the original statement’, in relation to hearsay evidence, means the underlying statement (if any) by –

- (a) in the case of evidence of fact, a person having personal knowledge of that fact, or
- (b) in the case of evidence of opinion, the person whose opinion it is; and

‘statement’ means any representation of fact or opinion, however made.

8.23

14 Savings

(1) Nothing in this Act affects the exclusion of evidence on grounds other than that it is hearsay.

This applies whether the evidence falls to be excluded in pursuance of any enactment or rule of law, for failure to comply with rules of court or an order of the court, or otherwise.

(2) Nothing in this Act affects the proof of documents by means other than those specified in section 8 or 9.

(3) Nothing in this Act affects the operation of the following enactments –

- (a) section 2 of the Documentary Evidence Act 1868 (mode of proving certain official documents);
- (b) section 2 of the Documentary Evidence Act 1882 (documents printed under the superintendence of Stationery Office);

Children (Admissibility of Hearsay Evidence) Order 1993, SI 1993/621

8.24

1 Citation and commencement

This Order may be cited as the Children (Admissibility of Hearsay Evidence) Order 1993 and shall come into force on 5 April 1993.

8.25

2 Admissibility of hearsay evidence

In –

- (a) civil proceedings before the High Court or a county court; and
- (b) (i) family proceedings, and
- (ii) civil proceedings under the Child Support Act 1991 in a magistrates' court,

evidence given in connection with the upbringing, maintenance or welfare of a child shall be admissible notwithstanding any rule of law relating to hearsay.

8.25[1]

Defined terms—‘child’: ChA 1989, s 105(1).

Undefined terms—Note that ‘civil proceedings’, ‘family proceedings’ and ‘evidence given in connection with the upbringing, maintenance or welfare of a child’ are not defined in this order. Whilst the order will clearly apply to most applications under ChA 1989 it is not clear whether, and if so in exactly what circumstances, it might apply eg to an application under FLA 1996, Pt IV.

‘civil proceedings under the Child Support Act 1991’—The relevant proceedings in a magistrates’ court are under s 20 (appeals from a child support officer where made in accordance with the Child Support Appeals (Jurisdiction of Courts) Order 2002, ie on an issue of parentage), s 26 (reference to court for declaration of parentage), and certain proceedings on enforcement under ss 33–40.

Evidence in Family Proceedings

1 Evidence: statutory provisions, duties and categories

8.26 Evidence—Evidence is the information that a court uses in order to reach a decision; on the basis of that definition alone, it excludes other concepts, such as speculation¹ and bias². In family proceedings the focus is almost invariably on the relevance and weight of evidence, rather than on its admissibility³. It is fundamentally wrong for the family court to be drawn into an analysis of factual evidence in proceedings relating to the welfare of children based upon criminal law principles and concepts⁴.

Directions for the filing of evidence will be an essential aspect of case management; parties may not depart from court directions by agreement⁵. The rules of evidence set out in FPR 2010, including those concerning the filing and serving of witness statements set out in FPR 2010 Part 22, must be applied by the court to represented and unrepresented litigants alike⁶. The court should be wary of informal applications⁷.

Save where there are express provisions to the contrary, judges sitting in the Family Division (and in the family court) make their decisions by applying the same legal principles as the judges who sit in the other divisions of the High Court⁸.

It is essential that a proper record is kept of evidence that is given at hearings⁹.

¹ See eg *Re A (Factfinding: Disputed Findings)* [2011] EWCA Civ 12, [2011] 1 FLR 1817, Munby LJ.

² See Leggatt LJ in *Sri Lanka v Secretary of State for the Home Department* [2018] EWCA Civ 1391, [2018] Imm AR 1348: 'One of the most important qualities expected of a judge is that they will strive to avoid being influenced by personal biases and prejudices in their decision-making.' For the principles relating to apparent bias, see [24]–[28] of the judgment of Baker LJ in *Re H (A Child) (Recusal)* [2023] EWCA Civ 860. See also the judgment of MacDonald J in *Re P (Sexual Abuse: Finding of Fact Hearing)* [2019] EWFC 27 about confirmation bias.

³ In *M and R (Child Abuse: Evidence)* [1996] 2 FLR 195 at 211, Butler-Sloss LJ said: 'the modern approach is to regulate such matters by way of weight, rather than admissibility'. See also, the judgment of Peter Jackson LJ in *R v P (Children: Similar Fact Evidence)* [2020] EWCA Civ 1088, [2021] 1 FLR 652 at [24], 'there are two questions that the judge must address in a case where there is a dispute about the admission of evidence of this kind. First, is the evidence relevant ... If so, it will be admissible. Second, is it in the interests of justice for the evidence to be admitted ...?'. As to the approach to breaches of ABE (Achieving Best Evidence) guidance see *Re B (Allegation of Sexual Abuse: Child's Evidence)* [2006] EWCA Civ 773, [2006] 2 FLR 1071, at [40].

⁴ See McFarlane LJ in *Re R (Children)* [2018] EWCA Civ 198, [2018] 2 FLR 718 at [67].

⁵ FPR 2010, r 4.5(3) and see *London Borough of Redbridge v A, B and E (Failure to Comply with Directions)* [2016] EWHC 2627 (Fam) per MacDonald J at [11] and [12]:

'case management orders are to be obeyed ... agreements between the parties to amend the timetable set by the Family Court are forbidden ... the burden of other work is not an excuse for non-compliance with the directions of the court ... casual non-compliance is not an option ... failure of a Local Authority to comply with court orders causing unnecessary and harmful delay may result in a breach of Arts 6 and 8 and in an award of damages ... case management directions are not mere administrative pedantry.'

In *Re C (Family Proceedings: Case management)* [2012] EWCA Civ 1489, [2013] 1 FLR 1089, Munby LJ said at [15]:

'the judge in such a situation will always be concerned to ask himself: is there some solid reason in the interests of the children why I should embark upon, or, having embarked upon, why I should continue exploring the matters which one or other of the parents seeks to raise. If there is or maybe solid advantage to the children in doing so, then the inquiry will proceed, albeit it may be on the basis of submissions rather than oral evidence'.

⁶ *GM v EB (Rules of Evidence)* [2024] EWHC 288 (Fam), per MacDonald J.

⁷ *RQ v TS* [2024] EWHC 2509 (Fam), in which Judd J said:

'Whether or not a judge has the power to consider an application of its own motion under section 13 of the Children Act 1989, he should take care when dealing with an application such as this when made informally. Here both the parents were acting in person. An application for a change of name from that which is registered at birth is an important matter and in such circumstances a judge must ensure that the process is fair.'

⁸ In *Mann v Mann* [2016] EWHC 314 (Fam), [2017] 1 FLR 559 Roberts J said:

'What is now abundantly clear from the highest judicial authority from *Imerman v Tchenguiz* [2011] Fam 116 to *Prest v Petrodel Resources Ltd and Others* [2012] EWCA Civ 1395, [2013] UKSC 34, [2013] 2 AC 415 is that judges sitting in the Family Division make their decisions by applying the same legal principles as the judges who sit in the other Divisions of the High Court. That is the principle which has been accepted by the distinguished authors of *Halsbury's Laws of England* and *Rayden & Jackson*, each of which are regarded as seminal works of authority. I agree and respectfully concur with their views.'

⁹ FPR 2010, r 23.9 provides that 'In proceedings in the family court before a lay justice or lay justices, the justices legal adviser or the court shall keep a note of the substance of the oral evidence given at a directions appointment or at a hearing of any proceedings.' See also, for instance, *X Council v B (Emergency Protection Orders)* [2005] 1 FLR 341, per Munby J.

8.27 Main statutory provisions relating to evidence—These are:

- (1) Civil Evidence Act 1968 (CEA 1968): including provision about convictions as evidence in civil proceedings (s 11) and privilege against self-incrimination (s 14);
- (2) Civil Evidence Act 1972 (CEA 1972): including provision about the admissibility of expert evidence (s 3);
- (3) Civil Evidence Act 1995 (CEA 1995): including provision about hearsay evidence (ss 1–7) and proof of records of business or public authority (s 9).

In addition, note:

- (2) there are specific statutory provisions relating to the reports and evidence gathered by Cafcass/Welsh family proceedings officers for private law proceedings and proceedings which are specified for the purposes of ChA 1989, s 41:
 - (i) in relation to reports that are filed by them in private law or specified proceedings (broadly, public law proceedings) 'the court may take account of (a) any statement contained in the report; and (b) any evidence given in respect of the matters referred to in the report, in so far as the statement or evidence is, in the opinion of the court, relevant to the question which it is considering' (ChA 1989, s 7(4) and s 41(11));
 - (ii) where a Cafcass or Welsh family proceedings officer takes a copy of any record which they are entitled to examine under ChA 1989, s 42, that copy, or part of it, is admissible as evidence of any matter referred to in: (a) any report which he makes to the court in the proceedings in question; or (b) any evidence which he gives in the proceedings;
 - (iii) the provisions apply 'regardless of any enactment or rule of law which would otherwise prevent the admission in evidence of the relevant material' (ChA 1989, s 7(4), s 41(11) and s 42(3)).
- (3) ChA 1989, s 96, about evidence given by or with respect to children; and s 98, about the privilege against self-incrimination in proceedings under Pts IV or V;
- (4) the Children (Admissibility of Hearsay Evidence) Order 1993.

8.28 Main rules relating to evidence—FPR 2010 apply to family proceedings in the High Court and in the family court¹. The terms of the individual rules and the case law arising under them are set out in full in Part III of this work. However, the following table sets out the main rules that relate to evidence in family proceedings:

FPR 2010	Contents	Summary
Part 1	Overriding objective	The objective of the rules is to enable the court to deal with cases justly. Part 1 defines how that is to be achieved, and how the parties are to assist in achieving it. It also defines the court's duty to manage cases (r 1.4).
Part 3A	Vulnerable persons: participation in proceedings and giving evidence	Provides for participation directions, the duty to consider the vulnerability of parties and witnesses, the making of directions for measures to support vulnerable witnesses and for Practice Directions.

FPR 2010	Contents	Summary
		PD3AA relates to the participation of vulnerable persons in proceedings and the giving of evidence by them. PD3AB relates to the prohibition of cross-examination in person under MFPA 1984, Pt 4B (QLR, etc).
Part 4	Case management powers	Includes the general case management powers, the power for the court to make orders of its own initiative, the power to strike out a statement of case, sanctions, relief from sanctions, rectification of procedural errors and the power to make civil restraint orders.
Part 5	Forms, start of proceedings and communication with the court	Includes, in PD5A, a list of the forms that should be used.
Part 17	Statements of truth	Documents that need to bear a statement of truth and the contents of such statements.
Part 21	Disclosure and inspection of documents	Includes orders for disclosure against a person who is not a party and claims to withhold inspection or disclosure of a document.
Part 22	Evidence	Contains detailed provisions relating to evidence in family proceedings. It includes the power of the court to control evidence (1), the manner in which evidence is to be given (2 and 3), how witness statements must be drafted, served and used (4, 5 and 6), the general rule that (other than in final hearings) evidence is to be by statement (7), the power of the court to order a person to attend for cross-examination (8), the provision of witness summaries (9), the consequences of failing to serve a witness statement (10), cross-examination on a witness statement (11), when and how affidavit evidence must be given (12–14), notices to admit facts and admit/produce documents (15 and 16), notarial acts and instruments (17), the availability of witness statements and affidavits for inspection (18 and 19) and the use of witness statements for other purposes (18 and 20). The rule is supplemented by PD22A in relation to the preparation of statements/affidavits and the arrangements for video conferencing/hearings.
Part 23	Hearsay evidence	Includes rules relating to the giving of notice of intention to rely on hearsay evidence, the power to call a hearsay witness for cross-examination and the credibility of hearsay witness.
Part 24	Witness summonses, and depositions	The procedure for witness summonses and for taking depositions.
Part 25	Expert evidence	This is considered in more detail below and in the part of this work that sets out the whole of the rule.
Part 27	Hearings and directions appointments	Reasons must be given for a decision by lay justices (r 27.2), a party must attend a hearing (r 27.3), proceedings may take place in the absence of a party (r 27.4), an application may be made to set aside a judgment/order made in a party's absence (r 27.5), court bundles must

FPR 2010	Contents	Summary
		be filed in accordance with PD27A (r 27.6), a company may be represented by an employee in stated circumstances (r 27.7), documents impounded by the court may be released in accordance with the rule (r 27.8), the recording, transcription and noting of proceedings must comply with r 27.9, hearings must be in private except in stated circumstances (r 27.10) and only listed people may attend private hearings (r 27.11). NB PD27A makes provision in relation to bundles. PD27B governs the attendance of media representatives or duly authorised lawyers at hearings in family proceedings.
Part 37	Contempt proceedings	Of particular relevance to evidential requirements are the provisions of r 37.4(1) which requires written evidence in support of the application by affidavit or affirmation 'unless and to the extent that the court directs otherwise'; and r 37.4(2) that state that a contempt application must include: (h) a brief summary of the facts alleged to constitute the contempt, set out numerically or in chronological order ...; (m) that the defendant is entitled, but not obliged, to give written and oral evidence in their defence; and (n) that the defendant has the right to remain silent and to decline to answer any question, the answer to which may incriminate the defendant.

¹ See FPR 2010, r 2.1. Family proceedings are defined in MFPA 1984, s 32 and SCA 1981, s 61(1). As such, they do not apply to proceedings, for instance, under TOLATA 1996 or under I(PFD)A 1975. Proceedings under those Acts are governed by CPR 1998.

8.29 Key differences between children and other family proceedings including financial remedy proceedings—There are a number of differences between the laws of evidence relating to children proceedings and those that apply to other family proceedings. They include:

	Children proceedings	Other family proceedings including financial remedy proceedings
Hearsay	Children (Admissibility of Hearsay Evidence) Order 1993	CEA 1972
Experts	CFA, 2014, s 13	FPR, r 25.4
Self-incrimination	ChA 1989, s 98 in cases under Pts IV or V	CEA 1968, s 14
FDR/FHDRA privilege	FHDRA is not privileged	FDR is privileged

8.30 Duty of disclosure—Although, perhaps oddly, the FPR 2010, unlike the CPR 1998 (Pt 31) and the Criminal Procedure Rules (Pt 15) contain no rule about disclosure, there remains a duty of full and frank disclosure on parties to family proceedings. There is such a duty, owed to the court both by the parties and by their legal representatives, in all matters relating to children; the duty continues until the handing down of any reserved judgment¹. Non-disclosure of material to one party should be considered in accordance with principles stated in *Re T (Children: Non-Disclosure)*².

There is a similar duty in financial remedy proceedings³. Form E itself sets out the outline of what must be disclosed and must be drafted in a manner that truly reflects the duty of full and frank disclosure. This is again a continuing duty, reflected in the standard directions at an FDR when listing the matter for final hearing (see standard family orders 1.1 at paras 39–41 and 1.2, para 34). As to whether there is a continuing duty of full and frank disclosure in financial remedy appeals, McFarlane LJ expressed a ‘preliminary view’ in *N v N (Periodical Payments: Non-Disclosure)*⁴ that he would be:

‘against such a duty on the ground that it would be unnecessarily burdensome, and a potential source of unwarranted satellite litigation to establish a formal requirement that the parties should keep all of their previous financial disclosure up to date in the lead up to an appeal and before the appellate court has determined whether there has been any material error in the first instance decision.’

¹ See Practice Direction: Case Management [1995] 1 FLR 456, para 4 (issued by the then President, Sir Stephen Brown), *Re W (A Child) (No 4)* [2017] EWHC 1760 (Fam) at [25] (Sir James Munby P) and *Vernon v Bosley (No 2)* [1998] 1 FLR 304 (at pages 304, 318, 321, 343 and 345).

² [2024] EWCA Civ 241, drawing from *Re D (Minors) (Adoption Reports: Confidentiality)* [1996] AC 593, [1995] 2 FLR 687:

‘(1) It is a fundamental principle of fairness that a party is entitled to the disclosure of all materials which may be taken into account by the court when reaching a decision adverse to that party ... (2) ... the court should first consider whether disclosure of the material would involve a real possibility of significant harm to the child. (3) If it would, the court should next consider whether the overall interests of the child would benefit from non-disclosure, weighing on the one hand the interest of the child in having the material properly tested, and on the other both the magnitude of the risk that harm will occur and the gravity of the harm if it does occur. (4) If the court is satisfied that the interests of the child point towards non-disclosure, the next and final step is for the court to weigh that consideration, and its strength in the circumstances of the case, against the interest of the parent or other party in having an opportunity to see and respond to the material. In the latter regard the court should take into account the importance of the material to the issues in the case. (5) Non-disclosure should be the exception not the rule. The court should be rigorous in its examination of the risk and gravity of the feared harm to the child, and should order non-disclosure only when the case for doing so is compelling.’

³ See eg *J v J* [1955] P 215 (Sachs J), *Livesey (formerly Jenkins) v Jenkins* [1985] AC 424, [1985] FLR 813, *NG v SG (Appeal: Non-Disclosure)* [2011] EWHC 3270 (Fam), [2012] 1 FLR 1211 at [1] (Mostyn J), and *Sharland v Sharland* [2015] UKSC 60, [2015] 2 FLR 1367 In *Tchenguiz v Imerman* [2010] EWCA Civ 908, [2010] 2 FLR 814 at [33], Lord Neuberger MR made two observations:

‘First, that the Rules do not provide for any disclosure of information or disclosure (discovery) of documents until a spouse has lodged his Form E. Second, and even more significantly, that the process of disclosure (discovery) of documents both then and thereafter is closely regulated by the Rules and, in accordance with the Rules, by the court. Although there is a general and continuing duty to make full disclosure of all relevant information, there is, despite the duty imposed on the court by section 25 of the 1973 Act, no duty of general disclosure (discovery) of documents of the kind required in ordinary civil proceedings by the Civil Procedure Rules. And whereas in ordinary civil proceedings the parties can normally choose what documentary evidence to tender, it is the court which controls what documents are to be disclosed and tendered by way of evidence in ancillary relief proceedings.’

⁴ [2014] EWCA Civ 314, [2015] 1 FLR 241 at [53].

8.31 Is evidence necessary?—The court has a duty to manage cases in order to further the overriding objective¹. To do so, the court has extensive case management powers². The court may also control the evidence that is admitted³. Thus, directions will identify the relevant issues that need to be determined and the evidence that is to be filed in relation to it; in an appropriate case, a party may serve a notice to admit facts (or a notice to admit or produce documents) in an attempt to further limit the evidence that needs to be filed⁴.

¹ FPR 2010, r 1.4.

² FPR 2010, r 4.1(3).

³ FPR 2010, r 22.1 provides that the court may control evidence by giving directions as to (a) the issues on which it requires evidence; (b) the nature of the evidence which it requires to decide those issues;

and (c) the way in which the evidence is to be placed before the court. The rule goes on to provide that the court may exclude otherwise admissible evidence, may permit a party to adduce evidence where procedural requirements have not been followed and may limit cross-examination. A judge making case management decisions has a very wide discretion and a party seeking to appeal such a decision has an uphill task (*Re B (A child)* [2012] EWCA Civ 1742, [2013] 1 FLR 963 per Black LJ at [35]). In relation to case management decisions an appeal court will only interfere 'if satisfied that the Judge erred in principle, took into account irrelevant matters, failed to take into account relevant matters, or came to a decision so plainly wrong that it must be regarded as outside the generous ambit of the discretion entrusted to the judge' (*Re TG (a child)* [2013] EWCA Civ 5, [2013] 1 FLR 1250, per Munby P at [35]–[36]). An example of the control of evidence is *M (A Child – Private Law Children Proceedings – Case Management – Intimate Images)* [2022] EWHC 986 (Fam), [2023] 1 FLR 337 where Knowles J controlled the use of intimate images within the proceedings. However in *Re S-W (Children)* [2015] EWCA Civ 27 *sub nom* *Re S-W (Care Proceedings: Case Management Hearing)* [2015] EWCA Civ 27, [2015] 2 FLR 136 Lewison LJ said at [44]:

'As everybody who has anything to do with the law well knows, the path of the law is strewn with examples of open and shut cases which, somehow, were not; of unanswerable charges which, in the event, were completely answered; of inexplicable conduct which was fully explained; of fixed and unalterable determinations that, by discussion, suffered a change. Nor are those with any knowledge of human nature who pause to think for a moment likely to underestimate the feelings of resentment of those who find that a decision against them has been made without their being afforded any opportunity to influence the course of events ...';

and at [47]:

'In both civil and family cases the Court of Appeal has said on more than one occasion that it will uphold robust but fair case management decisions by first instance judges: *Cherney v Deripaska* [2012] EWCA Civ 1235, [2012] All ER (D) 43 (Oct) at [17], [30]; *Re TG (Care Proceedings: Case Management: Expert Evidence)* [2013] EWCA Civ 5, [2013] 1 FLR 1250, at [35]–[36]. Both adjectives are important. Robustness cannot trump fairness.'

⁴ FPR 2010, r 22.15 and 22.16. The effect of such a notice is set out in those rules.

8.32 Categories of evidence—The main categories and rules of evidence that are relevant to family proceedings are:

- (1) **Direct evidence** – This term is used to describe the evidence given by a witness of what that witness did, saw, heard, etc. The general rule in family proceedings is stated in FPR 2010, r 22.1: any fact which needs to be proved by the evidence of witnesses is to be proved: (a) at the final hearing, by their oral evidence and (b) at any other hearing, by their evidence in writing¹.
- (2) **Indirect evidence (circumstantial evidence and inherent probabilities)** – A case based on circumstantial evidence depends for its cogency on the combination of relevant circumstances and the unlikelihood of coincidences in those circumstances ('inherent probabilities'). A party advancing it argues that the circumstances can only or most probably be accounted for by the explanation which it suggests². An example is a case where there is no direct evidence (including any admission) as to how a baby came to be injured.
- (3) **Real evidence** – A 'real thing' itself, directly connected with the matter in dispute, such as a bruise or scar on the face of an alleged victim who says (direct evidence) the bruise was caused by the other party; the iron/belt which the local authority alleges was used to burn/whip a child; or contents of the matrimonial home if directly produced to the court. Props are not themselves (real) evidence but aids to communication³.
- (4) **Corroborative evidence** – The court may act on the testimony of a single witness, even where there is no other evidence which corroborates it. However, it will be important to identify whether there is corroborative or supportive evidence in relation to an allegation when the court is engaged in a fact-finding exercise. In so doing, the court should identify the character of the corroborating evidence before considering the extent to which it does afford corroboration⁴.

¹ In *Carmarthenshire County Council v Y* [2017] EWFC 36, [2017] 4 WLR 136 Mostyn J said (at [7]):

'FPR 22.2(1)(a) provides that the general rule is that any fact which needs to be proved by the evidence of witnesses is to be proved, at the final hearing, by their oral evidence. FPR 22.6(2) in effect removes the right to give oral evidence-in-chief as in all cases a witness (other than a summoned witness) will have been required to provide a witness statement, which will stand as

evidence-in-chief. Oral evidence-in-chief now requires the permission of the judge be given. FPR 22.11 provides the right to cross-examine a witness on his or her witness statement. Thus, the general rule is that facts in issue are to be proved by written evidence-in-chief and oral evidence given under cross-examination'. The general rule in FPR 2010, r 22.1 does not apply to: (a) proceedings under FPR 2010, Pt 12 for secure accommodation, interim care orders or interim supervision orders; or (b) where an enactment, any of the FPR, a Practice Direction or a court order provides to the contrary.

- ² See *Re A (Children)* [2018] EWCA Civ 1718, per King LJ, citing *Nulty (decd) v Milton Keynes Borough Council* [2013] EWCA Civ 15, [2013] 1 WLR 1183.
- ³ In *The Statue of Liberty; Owners of Motorship Sappord Maru v Owners of Steam Tanker Statue of Liberty* [1968] 2 All ER 195, [1968] 1 WLR 739, Simon P cited *Cockle's Cases and Statutes on Evidence* (GD Nokes, 10th edn, 1963) and said (at 740): 'Real evidence is evidence afforded by the production of physical objects for inspection or other examination by the court.'
- ⁴ See *Re P (Sexual Abuse Finding of Fact Hearing)* [2019] EWFC 27 at [267]–[269].

8.33 Competence and compellability—Since the Evidence Act 1851, the parties to civil proceedings (which would now include family proceedings) are compellable and competent to give evidence in proceedings. It has been held that that rule also applies to children who are parties¹. Parents may be required to give evidence in care proceedings². The court has specific case management powers to require a party or a party's legal representative to attend the court³.

Hearsay evidence will not be admitted in civil proceedings if or to the extent that it is shown to consist of, or to be proved by means of, a statement made by a person who at the time he made the statement was not competent as a witness⁴.

¹ See *Re P (Child: Compellability as Witness)* [1991] FCR 337 at 338 but this needs to be considered in the light of *Re W (Children)* [2010] UKSC 12, [2010] 1 FLR 1485.

² In *Re Y and K (Split hearing: evidence)* [2003] EWCA Civ 669, [2003] 2 FLR 273, Hale LJ said:

'[31] Even in civil proceedings it used to be (a very long time ago) that the parties were not competent witnesses. But that was abrogated in civil proceedings by section 2 of the Evidence Act 1851. The general principle is that all competent witnesses are also compellable witnesses. This is set out in Phipson on Evidence (15th Ed) 2000 at paragraph 8-15: "All witnesses competent to give evidence are in general compellable to do so. Refusal to be sworn when compellable, or, after being sworn refusal to answer an admissible question, is a contempt of court." There are some exceptions, but none of those listed in Phipson apply, although there remains a residual discretion in the court to refuse to compel a compellable witness if to do so would be a fishing exercise, speculation or oppression. This will rarely be the case in care proceedings where the parents' explanations of what has happened to their child are usually an important factor in understanding the case ...

[35] We are glad, therefore, to have the opportunity today of clarifying the situation. Parents can be compelled to give evidence in care proceedings; they have no right to refuse to do so; they cannot even refuse to answer questions which might incriminate them. The position is no different in a split hearing from that in any other hearing in care proceedings. If the parents themselves do not wish to give evidence on their own behalf there is, of course, no property in a witness. They can nevertheless be called by another party if it is thought fit to do so, and the most appropriate person normally to do so would be the guardian acting on behalf of the child.'

³ FPR 2010, r 4.1(3)(d).

⁴ CEA 1995, s 5(1). The subsection goes on to state:

'For this purpose "not competent as a witness" means suffering from such mental or physical infirmity, or lack of understanding, as would render a person incompetent as a witness in civil proceedings; but a child shall be treated as competent as a witness if he satisfies the requirements of section 96(2)(a) and (b) of the Children Act 1989 (conditions for reception of unsworn evidence of child).'

8.34 Withholding evidence from a party—FPR 2010, Pt 21 governs the disclosure and inspection of evidence and r 21.3 addresses claims to withhold inspection or disclosure. A person who seeks to withhold either disclosure or inspection of relevant evidence must make an application for permission to do so¹. The denial of disclosure or inspection in such circumstances

is limited to circumstances where such denial is strictly necessary². Where an officer of Cafcass writes a risk assessment under ChA 1989, s 16A, the report must not be disclosed by the Cafcass officer to the parties, rather it should be filed with the court and the court must then consider whether it should be disclosed³.

¹ See *R v Secretary of State for the Home Department (Disclosure of Asylum Documents)* [2019] EWHC 3147 (Fam), per MacDonald J at [77]. For guidance as to the approach where non-disclosure is sought in the interests of a child, see *Re T (Children: non-disclosure)* [2024] EWCA Civ 241, [2024] 2 FLR 361 in which it was said that the court should ask itself the following questions:

- ‘(1) Is the material relevant to the issues, or can it be excluded as being irrelevant or insufficiently relevant to them?
- (2) Would disclosure of the material involve a real possibility of significant harm to the child and, if so, of what nature and degree of probability?
- (3) Can the feared harm be addressed by measures to reduce its probability or likely impact?
- (4) Is the material relevant to the issues, or can it be excluded as being irrelevant or insufficiently relevant to them?
- (5) Where the child’s interests point towards non-disclosure, do those interests so compellingly outweigh the rights of the party deprived of disclosure that any non-disclosure is strictly necessary, giving proper weight to the consequences for that party in the particular circumstances?
- (6) If interference is appropriate, can it be limited in scope or duration so that the interference with the rights of others and the effect on the administration of justice is not disproportionate to the feared harm.’

² In *Re G (Inherent Jurisdiction Return- Disclosure of Asylum Documents)* [2022] EWHC 2134 (Fam), [2023] 1 FLR 317 at [15] Knowles J gave this summary of the law:

‘The approach to an application to withhold disclosure derives from the decision of the Court of Appeal in *Dunn v Durham County Council* [2012] EWCA Civ 1654, [2013] 1 WLR 2305. It was endorsed in *Re H (A Child) (Disclosure of Asylum Documents)* [2020] EWCA Civ 1001, [2021] 1 FLR 586 and *G v G* [2021] UKSC 9, [2021] 2 FLR 536. At paragraph 53 of *Re H*, the Court of Appeal emphasised that “the denial of disclosure or inspection is limited to circumstances where such denial is strictly necessary”.’

The Court of Appeal in *Dunn* summarised the approach to be taken at [23]:

‘First, obligations in relation to disclosure and inspection arise only when the relevance test is satisfied. Relevance can include “train of enquiry” points which are not merely fishing expeditions. This is a matter of fact, degree and proportionality. Secondly, if the relevance test is satisfied, it is for the party or person in possession of the document or who would be adversely affected by its disclosure or inspection to assert exemption from disclosure or inspection. Thirdly, any ensuing dispute falls to be determined ultimately by a balancing exercise, having regard to the fair trial rights of the party seeking disclosure or inspection and the privacy or confidentiality rights of the other party and any person whose rights may require protection. It will generally involve a consideration of competing ECHR rights. Fourthly, the denial of disclosure or inspection is limited to circumstances where such denial is strictly necessary. Fifthly, in some cases the balance may need to be struck by a limited or restricted order which respects a protected interest by such things as redaction, confidentiality rings, anonymity in the proceedings or such other order. Again, the limitation or restriction must satisfy the test of strict necessity.’

Having endorsed the above summary from *Dunn*, Baker LJ said in *Re H* ([2020] EWCA Civ 1001, [2021] 1 FLR 586 at [54]):

‘The weight to be attached to the confidentiality of the information varies from case to case, but the approach to the balancing exercise is the same. As this Court emphasised in *Dunn v Durham County Council*, the denial of disclosure or inspection is limited to circumstances where such denial is strictly necessary because, as Munby J observed in *Re B (Disclosure to Other Parties)* [2001] 2 FLR 1017, in most cases the needs of a fair trial will demand that there be no restrictions on disclosure. It follows that the judge was right to say, at paragraph 55 of the second judgement that the starting point in any analysis must be that a party to family proceedings is entitled to consider all evidence that is relevant, pursuant to his cardinal rights under the ECHR and the common law principles of fairness and natural justice.’

Baker LJ went on to say in at [55] that asylum material was no different in this context from any other type of confidential material.

In *Re B (Disclosure to Other Parties)* [2001] 2 FLR 1017 (referred to in the passage above), Munby J stated: ‘Although, as I have acknowledged, the class of cases in which it may be appropriate to

restrict a litigant's access to documents is somewhat wider than has hitherto been recognised, it remains a fact, in my judgment, that such cases will remain very much the exception and not the rule. It remains the fact that all such cases require the most anxious, rigorous and vigilant scrutiny. It is for those who seek to restrain the disclosure of papers to a litigant to make good their claim and to demonstrate with precision exactly which documents or classes of documents required to be withheld. The burden on them is a heavy one. Only if the case for non-disclosure is convincingly and compellingly demonstrated will an order be made. No such order should be made unless the situation imperatively demands it. No such order should extend any further than is necessary. The test, at the end of the day, is one of strict necessity. In most cases the needs of a fair trial will demand that there be no restrictions on disclosure. Even if a case for restrictions is made out, the restrictions must go no further than is strictly necessary.'

To deny a party sight of relevant material which all other parties and the court have seen represents a substantial breach of the principles of natural justice. Those principles have been repeatedly emphasised by the courts. In *Kanda v Government of Malaya* [1962] AC 322, Lord Denning in the Judicial Committee stated at p 337:

'If the right to be heard is to be a real right which is worth anything, it must carry with it a right in the accused man to know the case which is made against him. He must know what evidence has been given and what statements have been made affecting him: and then he must be given a fair opportunity to correct or contradict them'.

A more recent statement of that principle was enunciated by Lord Dyson in *Al Rawi v Security Service* [2011] UKSC 34 at [12]: '... trials are conducted on the basis of the principle of natural justice. There are a number of strands to this. A party has a right to know the case against him and the evidence on which it is based. He is entitled to have the opportunity to respond to any such evidence and any submissions made by the other side. The other side may not advance contentions or adduce evidence of which he is kept in ignorance.'

- ³ See the wording of ChA 1989, s 16A and of FPR 2010, PD12L. Cafcass issued guidance on this at para 2.5 of the 'Cafcass Child Protection Policy 2015.'

8.35 Improperly obtained evidence—Extensive consideration has been given by the Court of Appeal to the position where one party to financial remedy proceedings comes into possession of confidential documents belonging to the other party¹. Key aspects of the judgment are:

- (i) the so-called 'Hildebrand rules' that suggested that clients were encouraged to access documents belonging to the other spouse (provided force was not used) only relates to the time when copies obtained unlawfully or clandestinely should be disclosed to a spouse²;
- (ii) it would be a breach of confidence, without the authority of the other party, to examine or to make, retain or supply copies to a third party of a document whose contents are, and were (or ought to have been) appreciated to be, confidential to the other party³;
- (iii) the court in financial remedy proceedings has to the power to admit or exclude improperly obtained material⁴. This is reflected in r 22.1. In determining whether to exclude the information, the court will need to balance the parties' competing rights: one party's right to a fair trial under Art 6, with access to all available relevant documents and information, as against the other party's right under Art 8 to privacy and the preservation of confidentiality. The appropriate balance between these competing rights and other factors is highly fact sensitive.

¹ See *Tchenguiz v Imerman*; *Imerman v Imerman* [2010] EWCA Civ 908, [2010] 2 FLR 814. The principles from *Tchenguiz* were applied in *Arbili v Arbili* [2015] EWCA Civ 542 and in a number of first instance decisions – see eg *G v G* [2015] EWHC 1512 (Fam) and *Thum v Thum* [2019] EWFC 25, [2019] 1 FLR 380. Mostyn J gave practical guidance as to what a receiving party should do with (so called) *Imerman* documents in *UL v BK* (*Freezing Orders: Safeguards: Standard Examples*) [2013] EWHC 1735 (Fam) at [56](iii)–(iv).

² The name 'Hildebrand rules' comes from *Hildebrand v Hildebrand* [1992] 1 FLR 244. Giving the judgment of the court in *Tchenguiz v Imerman*, Lord Neuberger MR said:

'[36] What have become known as the Hildebrand rules form the basis of advice by lawyers to their clients with the apparent approval of the judges of the Family Division. In essence clients are encouraged to access documents belonging to the other spouse, whether they were confidential or not, provided force is not used. Once access to such documents or information has been gained, the spouse may retain and use copies, though not the originals, but those copies should be disclosed when a questionnaire is served, or earlier if either party makes what has become a standard request ...

[41] *Hildebrand v Hildebrand* itself is accordingly no authority for the proposition that a spouse may, in circumstances that would otherwise be unlawful, take, copy and retain copies of confidential documents. In other words, it is no authority for the so-called Hildebrand rules ...

[42] *Hildebrand v Hildebrand*, in our judgment, is authority only as to the time when copies obtained unlawfully or clandestinely should be disclosed to a spouse. On that narrow point – what we have referred to as the “rule in *Hildebrand*” – it was and remains good law. In other words, and we wish to emphasise this, subject to only one qualification it is and remains the obligation of a wife who has obtained access to her husband’s documents unlawfully or clandestinely to disclose that fact promptly, either if asked by her husband’s solicitors or at the latest and in any event when she serves her Questionnaire ...

[121] It follows that nothing in the so-called Hildebrand rules can be relied upon in justification of, or as providing a defence to, conduct which would otherwise be criminal or actionable (whether as a tort or in equity) nor as providing any reason why the relief (whether at law or in equity) which would otherwise be available should not be granted. More particularly it follows that neither the wives who purloin their husband’s confidential documents nor the professional advisers who receive them (or copies of them) can plead the so-called Hildebrand rules in answer to a claim for relief of the kind we have referred to in paragraphs [73]–[74] above. We repeat the point we have already made about the availability of such relief against a third party, however innocent, who cannot establish that he is a bona fide purchaser of the information without notice – a defence which is unlikely to be available, for example, to the solicitors acting for the wife in the ancillary relief proceedings. And we add that where the information has been passed on, whether by the wife or by those acting in her interest, to the solicitors acting for her in the ancillary relief proceedings, the court might think it right and indeed in appropriate circumstances necessary to go so far as to enjoin her from continuing to instruct those solicitors in the proceedings: cf, *Re Z (Restraining Solicitors From Acting)* [2009] EWHC 3621 (Fam), [2010] 2 FLR 132.’

³ See [69] and [129] of the judgment, which state:

‘In our view, it would be a breach of confidence for a defendant, without the authority of the claimant, to examine, or to make, retain, or supply copies to a third party of, a document whose contents are, and were (or ought to have been) appreciated by the defendant to be, confidential to the claimant. It is of the essence of the claimant’s right to confidentiality that he can choose whether, and, if so, to whom and in what circumstances and on what terms, to reveal the information which has the protection of the confidence. It seems to us, as a matter of principle, that, again in the absence of any defence on the particular facts, a claimant who establishes a right of confidence in certain information contained in a document should be able to restrain any threat by an unauthorised defendant to look at, copy, distribute any copies of, or to communicate, or utilise the contents of the document (or any copy), and also be able to enforce the return (or destruction) of any such document or copy. Without the court having the power to grant such relief, the information will, through the unauthorised act of the defendant, either lose its confidential character, or will at least be at risk of doing so. The claimant should not be at risk, through the unauthorised act of the defendant, of having the confidentiality of the information lost, or even potentially lost ...

[129] It has been suggested that the court would be more reluctant to grant such orders in the family context, bearing in mind the more emotionally charged nature of the relationship between the parties than in the commercial context. We are unconvinced by that argument, given that the alternatives to a court order are either a strong belief on the part of the wife that she is being defrauded by her husband, or a husband’s private records being unlawfully, even criminally, and normally underhandedly, accessed by the wife. The applicable principles, and the requirements which a claimant has to satisfy, where the court is invited to grant relief are no different in the Family Division from those in the other two Divisions of the High Court, although, of course, in all three Divisions, the application of the principles has to be made to the facts and features of the particular case before the court.’

⁴ See [176] and [177] of the judgment:

‘[176] It would be surprising if the court in ancillary relief proceedings had no power to exclude evidence which was confidential to the husband and had been wrongly obtained from his records, however outrageous the circumstances of the obtaining of the evidence and however unfair on the husband it would be to admit the evidence. It would be all the more surprising in the light of the Human Rights Act 1998. As was explained by Ward LJ in *Lifely v Lifely* [2008] EWCA Civ 904, in a case of this type, the decision whether to admit or exclude evidence involves weighing one party’s (in this case, the wife’s) article 6 right to a fair trial with all the available evidence, against the other party’s (the husband’s) article 8 right to respect for privacy. (It may also involve the wife’s right under Article 10 to say what she wants to say, and the husband’s article 6 right, on the basis that he might say the trial was unfair if it extended to evidence which had been wrongly, even illegally, obtained from him) ...

[177] Accordingly, we consider that, in ancillary relief proceedings, while the court can admit such evidence, it has power to exclude it if unlawfully obtained, including power to exclude documents whose existence has only been established by unlawful means. In exercising that power, the court will be guided by what is “necessary for disposing fairly of the application for ancillary relief or for saving costs” and will take into account the importance of the evidence, “the conduct of the parties”, and any other relevant factors, including the normal case management aspects. Ultimately, this requires the court to carry out a balancing exercise, something which, we are well aware, is easy to say in general terms but is often very difficult to effect in individual cases in practice.’

8.36 Evidence from covert recording—In May 2025 the Family Justice Council published guidance on covert recording in Family proceedings concerning children¹.

¹ See: <https://www.judiciary.uk/related-offices-and-bodies/advisory-bodies/family-justice-council/resources-and-guidance/covert-recordings-in-family-law-proceedings-concerning-children/>. In *Re B (A Child)* [2017] EWCA Civ 1579, [2018] 1 FLR 1205, Munby P had invited the Family Justice Council to consider the issue having annulled guidance wrongly issued by a circuit judge on the subject; at [9]–[16], Munby P made some preliminary observations about covert recording. In *Re B* (above) Munby P said: ‘... covert recording in the context of the family courts potentially involves a myriad of issues, very few of which, despite all the judgments to which I have referred, have, even now, been systematically considered either at first instance or in this court.’ Compare with the approach in civil cases: eg *Jones v University of Warwick* [2003] EWCA Civ 151, [2003] 1 WLR 954 (where a cash box fell on the claimant’s hand and the defendants arranged for an enquiry agent to film her in her home); held that the court must exercise a discretion balancing the need to establish the truth (ECHR, Art 6) against the public interest not to encourage the unlawful obtaining of evidence (ECHR, Art 8). In *ICB v G* [2024] EWCOP 13 (at [29]–[36]), Hayden J examined the law relating to the admissibility of covert recordings in a Court of Protection case. He considered that the recordings were clearly relevant and admissible and said that ‘ultimately, it is a question for the court as to what weight may be placed upon them’ and warned that, such material frequently ‘redounds adversely to the interests of those who do the recording.’

2 Privilege

8.37 Legal professional privilege—Legal professional privilege is a single integral privilege whose sub-heads are legal advice privilege and litigation privilege¹. These two sub-heads are considered in the next two paragraphs.

¹ See *Three Rivers District Council v Governor and Company of the Bank of England (No 6)* [2004] UKHL 48, [2005] 1 AC 610, per Lord Carswell; and see the three-part article by Charles Prest ‘Legal Professional Privilege and Three Rivers (No 6)’ at [2006] Fam Law 767, 864 and 957.

8.38 Legal advice privilege—As a matter of public policy, all communications between a legal adviser and/or his or her client are privileged from the date of production so long as they are confidential, written by or to the legal adviser in his or her professional capacity, and for the purposes of giving or getting legal advice. The interest which it protects is to ensure that communications between a solicitor and client may be frank and free and should not emerge into the public domain if litigation is subsequently pursued. A party may, however, waive that privilege. Classically, this would be so in instances where the party refers in detail to and seeks to rely upon, part of a document setting out legal advice, but resists the other party’s efforts to obtain disclosure of the whole of that advice. Whether or not privilege has been waived is determined by the application of the principle of fairness¹. The fact that waiver is accidental makes no difference; once waived, the whole of the document must be produced (or at least, all parts relating to the subject matter). A document may be redacted to remove immaterial matter or material of no relevance to the case, whether privileged or otherwise². The privilege will survive the death of the client or the dissolution of a company³. Where a solicitor acts, not as the client’s adviser but as the client’s ‘man of business’, there will be no legal professional privilege⁴. Where legal advice is given by foreign lawyers, legal professional privilege may apply⁵.

¹ In *Nea Karteria Maritime Co Ltd v Atlantic & Great Lakes Steamship Corporation (No 2)* [1981] Comm LR 138, Mustill J said:

‘where a party is deploying in court material which would otherwise be privileged, the opposite party and the court must have an opportunity of satisfying themselves that what the party has chosen to release from privilege represents the whole of the material relevant to the issue in question. To allow an individual item to be plucked out of context would be to risk injustice through its real weight or meaning being misunderstood.’

This is referred to as the ‘cherry picking’ principle. A party cannot seek to gain an advantage in litigation by placing part of a document before the court and withholding the remainder.

² *Brennan v Sutherland City Council* [2009] ICR 479, per Elias J (cited in *AG v VD* [2020] EWHC 1847 (Fam), [2021] Fam Law 494). There is a summary of the legal principles of legal advice privilege in *G v G* [2015] EWHC 1512 (Fam) at [36]–[42]. In *Jardine Strategic Ltd v Oasis Investments II Master Fund Ltd (No 2)* [2025] UKPC 34, [2025] 3 WLR 615, the Privy Council rejected the exception that had prevented companies from asserting legal advice privilege against their shareholders in civil litigation.

³ *Minter v Priest* [1930] AC 558.

⁴ *Kerman v Akhmedova* [2018] EWCA Civ 307, [2018] 2 FLR 354 at [39]–[40]:

‘[39] The law relating to legal professional privilege is well-settled by the authorities: see, in particular, *Three Rivers District Council v Governor and Company of the Bank of England (No 6)* [2004] UKHL 48, [2005] 1 AC 610. The overarching principle is that confidential communications between client and solicitor for the purpose of obtaining legal advice – what the client tells the solicitor and what the solicitor advises his client – are privileged from discovery or disclosure. Legal professional privilege, once established, is absolute and permanent. It confers on the client, as the person entitled to the privilege, the right to decline to disclose or allow the disclosure of the confidential communications in question. It is long established that it is the duty of the solicitor to defend the client’s privilege.

[40] Legal professional privilege attaches to “legal advice” given by the solicitor to the client, so the question is whether the communication or document was made confidentially for the purpose of “legal advice”. This is not confined to telling the client the law but includes “advice as to what should prudently and sensibly be done in the relevant legal context”: see Lord Taylor CJ in *Balabel v Air India* [1988] Ch 317, 330. But where the solicitor is acting not as the client’s legal adviser but as the client’s “man of business”, there will be no legal professional privilege. As Lord Scott of Foscote said in *Three Rivers District Council and others v Governor and Company of the Bank of England (No 6)* [2004] UKHL 48, [2005] 1 AC 610, para 38: “If a solicitor becomes a client’s ‘man of business’ (and some do) advising the client on investment matters, finance policy and other business matters, the advice may lack a ‘relevant legal context.’”

Munby P then went on to examine the authorities in relation to whether fraud, dishonesty or iniquity might take a solicitor’s actions beyond privilege (see also *R v Cox and Railton* [1884] 14 QBD 153 and *C v C (Privilege)* [2008] 1 FLR 115).

⁵ Per Moulder J in *PJSC Tatneft v Gennady Bogolyubov* [2020] EWHC 2437 (Comm) (and see *Re Duncan* [1968] P 306 and *IBM Corp v Phoenix International (Computers) Ltd* [1995] 1 All ER 413 Ch D). At para [57] of his judgment in *PJSC Tatneft*, Moulder J said:

‘Accordingly in my view legal advice privilege extends to communications with foreign lawyers whether or not they are “in-house” and thus employees of a particular company or organisation and the court will not enquire into how or why the foreign lawyer is regulated or what standards apply to the foreign lawyer under the local law. The only requirement in order for legal advice privilege to attach is that they should be acting in the capacity or function of a lawyer or as expressed by Lord Neuberger in *Prudential* at [19], it should relate to: “communications passing between a client and its lawyers, acting in their professional capacity, in connection with the provision of legal advice”. There is no additional requirement in my view that foreign lawyers should be “appropriately qualified” or recognised or regulated as “professional lawyers”.’

The case of ‘*Prudential*’ referred to by Moulder J is *R (on the application of Prudential plc and another) v Special Commissioner of Income Tax* [2013] UKSC 1.

8.39 Litigation privilege—The privilege has been defined in these terms: ‘communications between parties or their solicitors and third parties for the purpose of obtaining information or advice in connection with existing or contemplated litigation are privileged, but only when the following conditions are satisfied: (a) litigation must be in progress or in contemplation; (b) the communications must have been made for the sole or dominant purpose of conducting that litigation; (c) the litigation must be adversarial, not investigative or inquisitorial¹.’ It has been held

that the starting point is that the court will grant relief to protect and restrain the use of material impressed with litigation privilege, regardless of its relevance to the facts in issue in the main dispute between the parties². A communication need not be made directly between a client and his legal adviser for the privilege to attach; it may be made through an agent as long as the agent is only a medium of communication³. Where privilege is raised, there must be sufficient information before the court for it to determine the validity of the claim to it⁴.

¹ *Three Rivers District Council v Governor and Company of the Bank of England (No 6)* [2004] UKHL 48, [2005] 1 AC 610, per Lord Carswell at [102].

² In *G v G* [2015] EWHC 1512, [2016] 1 FLR 1314 at [40] Roberts J referred to *USP Strategies Plc v London General Holdings Ltd* [2004] EWHC 373 (Ch) at [26], where Mann J said: 'So far as I have a discretion to do otherwise, it is not to be exercised merely on the footing that if I do not exercise it, the truth is more likely to come out. There must be some other factors, such as delay, acquiescence or other equitable defences which must be sufficiently strong to override the normal, very strong principle, that privileged communications are protected from disclosure.'

³ Also in *G v G* at [61], Roberts J quoted from *Passmore on Privilege* (3rd edn, 2013):

'A communication between a client and his legal adviser need not be made directly between them in order to qualify for advice privilege. Similarly, a communication with a third party need not be made directly by the client or lawyer in order to come within the scope of litigation privilege. In both cases, the client or the adviser is entitled to make the communication through an agent, so long as the agent is merely a medium of communication. Sir George Jessel MR explained in *Anderson v British Bank of Columbia* that privilege goes: "... not merely to a communication made to the professional agent himself by the client directly, it goes to all communications made by the client to the solicitor through intermediate agents, and he is not bound to write letters through the post, or to deliver himself personally to see the solicitor; he may employ a third person to write a letter, or he may send a letter through a messenger, or he may give a verbal message to a messenger, and ask him to deliver it to the solicitor, with a view to his prosecuting his claim, or of substantiating his defence."

⁴ In *West London Pipeline and Storage Ltd v Total UK Ltd* [2008] EWHC 1729 (Comm), Beatson J said, at [53]:

'Thus, affidavits claiming privilege whether sworn by the legal advisers to the party claiming privilege as is often the case, or, as in this case, by a Director of the party, should be specific enough to show something of the deponent's analysis of the documents or, in the case of a claim to litigation privilege, the purpose for which they were created. It is desirable that they should refer to such contemporary material as it is possible to do so without making disclosure of the very matters that the claim for privilege is designed to protect.'

At [86], Beatson J said:

'(1) The burden of proof is on the party claiming privilege to establish it: see *Matthews & Malek on Disclosure* (2007) 11–46, and paragraph [50] above. A claim for privilege is an unusual claim in the sense that the party claiming privilege and that party's legal advisers are, subject to the power in the court to inspect documents, the judges in their or their client's cause. Because of this, the court must be particularly careful to consider how the claim for privilege is made out and affidavits should be as specific as possible without making disclosure of the very matters that the claim for privilege is designed to protect: *Bank Austria Akt v Price Waterhouse; Sumitomo Corp v Credit Lyonnais Rouse Ltd* (per Andrew Smith J).'

8.40 Privilege against self-incrimination—The common law rule is that a person is not bound to answer questions which may tend to incriminate them, to expose them to any criminal charge, penalty or forfeiture which is reasonably likely to be preferred or sued for¹. The privilege was restated (other than for criminal proceedings) by the CEA 1968, s 14². It includes a similar right 'to refuse to answer any question or produce any document or thing if to do so would tend to expose the spouse or civil partner of that person to proceedings for any such criminal offence or for the recovery of any such penalty'.

ChA 1989, s 98, provides an exception to that rule in relation to proceedings under either ChA 1989 Pt IV or V. The case law in relation to ChA 1989, s 98 is set out in this work under that section. An important aspect of that case law is that, where the provisions of s 98 apply, witnesses should be informed of its meaning³. That information may be given in many cases at a directions hearing (or pre-trial review hearing) and may be recorded as having been given on the face of the order. Plainly, where the rule against self-incrimination does arise (eg in private law

children or financial remedy proceedings) a witness should be informed of it and the protection that it may afford. The privilege does not entitle a witness or party to refuse to engage at all; the witness or party is not entitled to say that he or she refuses to answer any questions at all⁴. The decision whether or not to draw an adverse inference from a refusal to answer questions will depend on the circumstances of the case⁵.

The rules relating to committal applications contain express provisions which are intended to provide defendants with the right to decline to give evidence that would incriminate themselves⁶.

¹ Per Goddard LJ in *Blunt v Park Lane Hotels* [1942] 2 KB 253, as cited by Cobb J in *Montreuil v Andreewitch (Contempt: No 2)* [2020] EWHC 1301 (Fam), [2020] 2 FLR 812. The extent and implications of the privilege were examined in *Re P (Children) (Disclosure)* [2022] EWCA Civ 495, [2022] 2 FLR 912.

² See para 8.5, above.

³ See *Re EC (Disclosure of Material)* [1996] 2 FLR 725, CA. The decision in *Re EC* is the guideline authority in relation to disclosure of information from family proceedings to the police or other third parties (see also *Re P (Children) (Disclosure)* [2022] EWCA Civ 495, [2022] 2 FLR 912). Disclosure of police material in children proceedings is governed by the 'Disclosure of Information Between Family and Criminal Agencies and Jurisdictions: 2024 Protocol' which applies in all children cases (whenever issued) from 1 March 2024, (see para 5.251) replacing the 'Protocol and Good Practice Model: Disclosure of information in cases of alleged child abuse and linked criminal and care directions hearings' (October 2013). As to disclosure from His Majesty's Prison and Probation Service and similar bodies, see *L (Third Party Disclosure Order: Her Majesty's Prison and Probation Service)*, *Re A Local Authority v J* [2022] EWHC 127 (Fam), [2022] 2 FLR 575 per Cobb J at [13].

⁴ See *Re P (Children) (Disclosure)* [2022] EWCA Civ 495, [2022] 2 FLR 912 and *Re O (Children) (Privilege against Self-Incrimination)* [2023] EWFC 14.

⁵ *Re T and J (Children)* [2020] EWCA Civ 1344, [2021] 1 FLR 1227 at [50]. See also *Re U (Care Proceedings: Criminal Conviction: Refusal to Give Evidence)* [2006] EWHC 372 (Fam), [2006] 2 FLR 690 in which Holman J declined to draw an adverse inference against the father, notwithstanding the fact that his failure to file a statement and answer questions was plainly a contempt of court (Holman J's approach was described as being 'unquestionably right' in *Re T and J* (above) at para [50]). In *T and J* the court referred to the observations of Lord Lowry in *R v IRC and another, ex p TC Coombs and Co* [1991] 2 AC 283 at p 300 F to H: 'In our legal system generally, the silence of one party in face of the other party's evidence may convert that evidence into proof in relation to matters which are, or are likely to be, within the knowledge of the silent party and about which that party could be expected to give evidence. Thus, depending on the circumstances, a prima facie case may become a strong or even an overwhelming case. But, if the silent party's failure to give evidence (or to give the necessary evidence) can be credibly explained, even if not entirely justified, the effect of his silence in favour of the other party may be either reduced or nullified'.

⁶ FPR 2010, r 37.4 provides that a contempt application must 'include statements of all the following ... (m) that the defendant is entitled but not obliged to give written and oral evidence in their defence ... (n) that the defendant has the right to remain silent and to decline to answer any questions the answer to which may incriminate the defendant'.

8.41 Conciliation privilege—It has been said that evidence may not be given in proceedings under ChA 1989 of statements made by one or other of the parties in the course of meetings held, or communications made, for the purposes of conciliation save in the very unusual case where a statement is made clearly indicating that the maker has caused or is likely in the future to cause serious harm to the well-being of a child¹. The facilitation of in-court conciliation at a FHDRA (or at any other hearing in a private law children case) does not of itself disqualify judges from continuing involvement with the case, particularly as information shared at such a hearing is expressly not regarded as privileged (FPR 2010, PD12B, para 14.9)².

¹ *Re D (Minors) (Conciliation: privilege)* [1993] 2 FLR 932 at 933, 935 and 937.

² *T (A child: suspension of Contact: Section 91(14) CA 1989)* [2015] EWCA Civ 719, [2016] 1 FLR 916 per Tomlinson LJ at [33], continuing:

'The current arrangement should therefore be distinguished from: i) Old-style conciliation appointments, which operated prior to the implementation of the "Private Law Programme" in 2004, the predecessor to the CAP (see Practice Direction [1982] 3 FLR 448; Practice Direction: Conciliation – children: [1992] 1 FLR 228: ie "If the conciliation proves unsuccessful the district judge will give directions (including timetabling) with a view to the early hearing and disposal of the application. In such cases that district judge and court welfare officer will not be further involved

in that application".); ii) Non-court dispute resolution (by way of mediation/conciliation) conducted by professionals outside of the court setting: see *Re D (Minors) (Conciliation: Privilege)* [1993] 1 FLR 932, *Farm Assist Ltd (in liquidation) v DEFRA (No 2)* [2009] EWHC 1102 (TCC)), and the Family Mediation Council Code of Practice for family mediators, paras 5.6.1 and 5.6.4; (iii) A Financial Dispute Resolution (FDR) Appointment in a financial remedy case; the judge conducting such a hearing is not permitted to have any further involvement with the application, save for giving directions: see rule 9.17(2) FPR 2010. In a financial case, of course, the Judge is likely to have been armed to conciliate with the provision of all the privileged communications between the parties.'

8.42 FDR privilege—In financial remedy proceedings, the FDR is a confidential hearing¹. The judge who hears the FDR appointment must have no further involvement with the application, other than to conduct any further FDR appointments or to make a consent order or a further directions order². There should be no disclosure of the words or conduct of either party during the FDR. Only the following may be disclosed:

- whether or not the FDR took place and, if so, whether both parties attended (essential information for the court given that the court, when considering whether to make a costs order, can take into account 'whether a party failed to comply with an order for alternative dispute resolution, or unreasonably failed to engage in alternative dispute resolution') (FPR 2010, r 44.2(5)(e));
- the identity of the pFDR evaluator and the legal teams;
- the location of the pFDR. The length of the pFDR.³

¹ FPR 2010, PD9A, para 6.2 provides:

'In order for the FDR to be effective, parties must approach the occasion openly and without reserve. Non-disclosure of the content of such meetings is vital and is an essential prerequisite for fruitful discussion directed to the settlement of the dispute between the parties. The FDR appointment is an important part of the settlement process. As a consequence of *Re D (Minors) (Conciliation: Disclosure of Information)* [1993] Fam 231, evidence of anything said or of any admission made in the course of an FDR appointment will not be admissible in evidence, except at the trial of a person for an offence committed at the appointment or in the very exceptional circumstances indicated in *Re D*.'

² FPR 2010, r 9.17 (2). The effect is that the judge who hears an FDR cannot then decide subsidiary issues that the parties had subsequently failed to agree: *Myerson v Myerson* [2009] EWCA Civ 282, [2009] 1 FLR 826. In *Shokrollah-Babae v Shokrollah-Babae* [2019] EWHC 2135, [2019] 1 WLR 6517 Holman J said at [27]:

'as a judge specialist in financial matters who frequently hears financial cases here at the Royal Courts of Justice, that it has been my experience and understanding ever since *Myerson* at the latest (now over ten years ago) that it is simply axiomatic in this building that once a given judge has conducted an FDR, he simply cannot have anything further whatsoever to do with the case apart from conducting a further FDR, or making a consent order as indicated as exceptions within rule 9.17(2) itself.'

³ *BC v BC* [2025] EWFC 236, per Peel J.

8.43 Without prejudice correspondence—The 'without prejudice' rule renders inadmissible in any subsequent litigation connected with the same subject matter proof of any admissions made in a genuine attempt to reach a settlement¹. However, when the issue is whether without prejudice letters have resulted in an agreed settlement, the correspondence is admissible². In financial remedy proceedings, no offer which is not an open offer to settle is admissible at any stage except as provided by FPR, r 9.17³. The issue of without prejudice offers in relation to costs is dealt with more fully at **3.1182[4]**.

¹ *Rush & Tompkins Ltd v Greater London Council* [1989] AC 1280, per Lord Griffiths. In *Muller v Linsley & Mortimer* [1996] PNLR 74, Hoffman LJ said at [79]–[80] that the without prejudice rule (to which he also referred as a 'privilege'):

'operates as an exception to the general rule on admissions (which can itself be regarded as an exception to the rule against hearsay) that the statement or conduct of a party is always

admissible against him to prove any fact which is thereby expressly or impliedly asserted or admitted. The public policy aspect of the rule is not in my judgment concerned with the admissibility of statements which are relevant otherwise than as admissions, i.e. independently of the truth of the facts alleged to have been admitted. Many of the alleged exceptions to the rule will be found on analysis to be cases in which the relevance of the communication lies not in the truth of any fact which it asserts or admits, but simply in the fact that it was made. Thus, when the issue is whether without prejudice letters have resulted in an agreed settlement, the correspondence is admissible because the relevance of the letters has nothing to do with the truth of any facts which the writers may have expressly or impliedly admitted. They are relevant because they contain the offer and acceptance forming a contract which has replaced the cause of action previously in dispute. ... Indeed, I think that the only case in which the rule has been held to preclude the use of without prejudice communications, otherwise than as admissions, is in the rule that an offer may not be used on the question of costs; a rule which ... has been held to rest purely upon convention and not upon public policy.'

² See *Muller* (above), *Unilever plc v The Proctor & Gamble Co* [2000] 1 WLR 2436, *Brown v Rice* [2007] EWHC 625 (Ch), and *Xydhias v Xydhias* [1999] 1 FLR 683.

³ FPR 2010, r 28.3(8). FPR, r 9.17 relates to FDR appointments. As a consequence, Calderbank offers (ie offers that are made 'without prejudice save in relation to costs') will not be admissible in proceedings governed by FPR, r 28.3. Calderbank provisions do still apply to some financial applications such as interim orders, maintenance pending suit, legal services orders (LASPOA 2012), ChA 1989, applications to set aside orders, appeals and enforcement proceedings. Rule 28.3 does not apply to civil proceedings (which will be governed on this issue by the different provisions of CPR 1998, Pt 36). Further, the no order principle in r 28.3 does not apply in a number of other situations that are ancillary to financial remedy proceedings (such as the costs of an intervener: *Baker v Rowe* [2009] EWCA Civ 1162, [2010] 1 FLR 761) and the costs of an appeal *WD v HD* [2015] EWHC 1547 (Fam), [2017] 1 FLR 160).

3 Expert (opinion) evidence

8.44 Meaning of 'expert'—The broader meaning of 'expert' is of someone who, by reason of their expertise in a particular subject, is entitled to give opinion evidence on matters that are within that area of expertise (see CEA 1972, s 3(1) at para 8.8 and below). In this sense a treating physician is as much an expert as one who is contracted within proceedings from outside the presenting situation.

The narrower meaning is of someone who has expertise in a particular subject but who is outside the presenting situation and is contracted within proceedings, often as a 'single joint expert', to give opinion evidence on matters that are within that area of expertise. In this sense a treating physician is not (usually) an expert.

Within FPR 2010, 'expert' is defined as 'a person who provides expert evidence for use in proceedings' (r 25.2(1)), before noting that in children proceedings CFA 2014, s 13(8) excludes certain people from that definition (broadly, social workers working for local authorities, adoption agencies and Cafcass). It is suggested that the r 25.2 definition of expert does not include a medical report written by a clinician within the ordinary course of treatment and that therefore Pt 25 does not apply to such a report.

Expert evidence from a treating professional—There is no rule against admitting the evidence of a professional who is already involved in treating a party/the child. Indeed there are cases where it is obviously necessary to do so, such as at the start of care proceedings issued because of the opinion of a treating physician or a police doctor that a child has recently suffered a serious inflicted injury. The issues in practice are:

- (1) in a case in which expert evidence is necessary but none has yet been admitted, whether a treating professional should be instructed. This may be quicker and cheaper, and the patient may prefer this to meeting someone not previously known to them. However the treating professional may have concerns under their own professional code of conduct (eg that it may compromise their work as the patient's treating clinician). In any event the court will need to be satisfied that the treating professional is able to be objective about the matters on which it requires expert opinion evidence; and
- (2) in a case in which the treating professional's evidence has already been admitted, whether a second opinion is necessary from an independent expert who is otherwise outside the matter

See eg *O-M, GM (and KM) v The Local Authority, LO and EM* [2009] EWCA Civ 1405, [2010] 2 FLR 58 at [44]–[45].

Admissibility of expert evidence: starting point—The starting point is CEA 1972, s 3(1) which provides that:

‘Subject to any rules of court made in pursuance of ... this Act, where a person is called as a witness in any civil proceedings, his opinion on any relevant matter on which he is qualified to give expert evidence shall be admissible in evidence.’

See also *Kennedy v Cordia (Services) LLP (Scotland)* [2016] UKSC 6, [2016] SCLR 203. Although this is a Scottish case with different law and terminology, the analysis about expert evidence is of general application (reflected in the many references to it in the President’s Memorandum: Experts in the Family Courts (see para **5.129**)). As to the admissibility of expert evidence, see [39]–[56] and in particular at [44] where Lord Reed stated:

‘As we have said, a skilled person can give expert factual evidence either by itself or in combination with opinion evidence. There are in our view four considerations which govern the admissibility of skilled evidence:

- (i) whether the proposed skilled evidence will assist the court in its task;
- (ii) whether the witness has the necessary knowledge and experience;
- (iii) whether the witness is impartial in his or her presentation and assessment of the evidence; and
- (iv) whether there is a reliable body of knowledge or experience to underpin the expert’s evidence.

All four considerations apply to opinion evidence, although ... when the first consideration is applied to opinion evidence the threshold is the necessity of such evidence. The four considerations also apply to skilled evidence of fact, where the skilled witness draws on the knowledge and experience of others rather than or in addition to personal observation or its equivalent.’

Each of those four considerations was addressed more fully in the following paragraphs, including a more nuanced analysis of ‘necessity’ in this context than is often put forward in family proceedings.

Admissibility of expert evidence: children proceedings—This is governed primarily by CFA 2014, s 13 (see para **8.1**); secondarily by the FPR 2010 (particularly, but not limited to, Pt 25 and the practice directions thereunder (see para **3.1026ff**)); by case law; and by formal guidance such as the President’s Memorandum: Experts in the Family Courts (see para **5.129**).

CFA 2014, s 13 sets down three ‘bars’. ‘A person may not without the permission of the court ...’:

- ‘... instruct a person to provide expert evidence for use in children proceedings’ (s 13(1));
- ‘... cause a child to be medically or psychiatrically examined or otherwise assessed for the purposes of the provision of expert evidence in children proceedings’ (s 13(3));
- ‘... put expert evidence (in any form) before the court’ (s 13(5)).

The court may ‘only’ give such permission ‘if [it] is of the opinion that the expert evidence is necessary to assist the court to resolve the proceedings justly (s 13(6)), and in deciding this it ‘is to have regard in particular to’ the eight factors set out in s 13(7).

Note that the question is not simply whether expert evidence is ‘necessary’ but whether it is ‘necessary to assist the court to resolve the proceedings justly’. There are five elements, not one: ‘necessary’, ‘assist’ (the same word as in ChA 1989, s 38(7A) but differing from ‘enable’ in ChA 1989, s 32(5)), ‘resolve’, ‘the proceedings’ (ie these particular proceedings), and ‘justly’.

FPR 2010, Pt 1 (the overriding objective, especially r 1.4(e) ‘controlling the use of expert evidence’), Pt 4 (general powers of case management), and Pt 22.1 (power of court to control evidence) are all applicable in principle though their importance is in practice greatly diminished given the provisions of CFA 2014, s 13.

FPR 2010, Pt 25.5(1) effectively adds ‘any failure to comply with rule 25.6 [when to apply for the court’s permission] or any direction of the court about expert evidence’ to the list of factors to which the court is to have regard under CFA 2014, s 13(7).

Pts 25.6–25.8 set out in detail important procedural requirements for such an application; and see also PD25A and PD25C. Note, in particular, that in children proceedings (but not other family proceedings) this includes the applicant stating and the court approving (revised, if and as necessary) the questions the expert is to answer (rr 25.7(3) and 25.8(2)).

As to the case law, see generally *Kennedy* [2016] UKSC 6 (above). The fact that other avenues have failed to produce a positive outcome cannot of itself render the obtaining of psychological evidence necessary, without the identification of certain issues about which expert evidence is required: *Re A and B (Children reports)* [2024] EWHC 948 (Fam).

Admissibility of expert evidence: other family proceedings—In other family proceedings, there is no statutory test. Instead it is governed primarily by FPR 2010, r 25.4(3) and 25.5(2). The former states:

- (2) A person may not without the permission of the court put expert evidence (in any form) before the court.
- (3) The court may give permission as mentioned in paragraph (2) only if the court is of the opinion that the expert evidence is necessary to assist the court to resolve the proceedings.'

The only difference in the wording between this and CFA 2014, s 13(6) is that the word 'justly' is omitted here. It is suggested, however that that must be implicit due to the wording of the overriding objective. Pt 25.5(2) sets out that 'when deciding whether to give [such] permission the court is to have regard in particular to' five particular factors.

FPR 2010, Pt 1 (the overriding objective, especially r 1.4(e) 'controlling the use of expert evidence'), Pt 4 (general powers of case management), and Pt 22.1 (power of court to control evidence) are also all applicable.

Pts 25.6–25.8 set out in detail important procedural requirements for such an application; and see also PD25A and PD25C. Unlike in children proceedings, the applicant is not required to state, and the court is not required to approve, the questions the expert is to answer, although in practice the former will often do so.

As to the case law, see *Kennedy* [2016] UKSC 6 (above), and note the President's Memorandum: Experts in the Family Courts (see para 5.129).

Choice of experts—In *Re C ('Parental Alienation'; Instruction of Expert)* [2023] EWHC 345 (Fam), [2023] 2 FLR 1171 McFarlane P said:

'Certain categories of psychologist, for example "clinical psychologist," have a "protected title", which may only be used by those who are validly registered under the regulations [see paragraph 66]. The generic label "psychologist" is not protected and may be used by any individual, whether registered or not. A report by an unregistered person calling themselves a psychologist may be called a "psychological report". The court must, therefore, work with the current, potentially confusing, scheme, but must do so with its eyes wide open to the need for clarity over the expertise of those who present as a psychologist, but who are neither registered nor chartered.'

On the facts of a given case, it may be appropriate for a chosen expert to be of a particular sex (*Re A (A Child: Appeal: Case Management Decision: Identity of Expert)* [2024] EWHC 1669 (Fam), per Henke J (female psychologist should have been instructed)).

Second opinions—In financial remedy proceedings, it has been held that the test of necessity will determine whether to allow a party to instruct a separate expert to challenge the report of a single joint expert in the manner considered in *Daniels v Walker* [2000] EWCA Civ 508, [2000] 1 WLR 1382; *GA v EL* [2023] EWFC 187, [2024] 1 FLR 1004.

Paying the expert—The normal order is that the cost of obtaining an expert's report is borne by the party to whom permission is given to instruct the expert except that if the expert is to be instructed as a single joint expert the cost will normally be borne equally between the parties.

In *Re K (Legal Aid: Experts' Fees)* [2025] EWFC 100, [2025] 2 FLR 835 McFarlane P considered the issue of when a local authority should be expected to make up the shortfall between the costs charged by an expert and the amount that the Legal Aid Agency would meet towards those costs. He set out the terms of an approved template order that the court might make in such circumstances and said:

'the LAA has been clear that it is not its intention that a local authority should be expected to make up any shortfall, save in unusual circumstances. The template order should ensure that all relevant information is supplied to the LAA before it considers whether prior authority should be granted. Where there is a likely shortfall, then the general principles identified by the experts' group are aimed at ensuring that the LAA has been provided with full information, that the internal LAA procedures (including any review) have been followed and the possibility of challenge by judicial review has been given reasonable consideration. Only then, when the court

is satisfied that these other reasonable steps have been properly taken, should it turn towards the local authority as a possible source of additional funding.'

Other matters about experts addressed in *Kennedy*—*Kennedy v Cordia (Services) LLP (Scotland)* [2016] UKSC 6, [2016] SCLR 203 not only addressed (i) the admissibility of such evidence (considered above), but also (ii) the responsibility of a party's legal team to make sure that the expert keeps to his or her role of giving the court useful information (at [57]); (iii) the court's policing of the performance of the expert's duties (at [58]–[59]); and (iv) economy in litigation (at [60]–[61]).

Duties of an expert—These are set out in FPR 2010, r 25.3 and PD25B. The heart of these is the duty 'to help the court on matters within their expertise', which 'overrides any obligation to the person from whom [they] have received instructions or by whom they are paid': r 25.3(1) and (2). More generally, the classic statement of an expert's duties is that of Cresswell J in *The Ikarian Reefer* (No 2) [1993] 2 Lloyd's Rep 68 which has ever since been repeatedly cited and approved including in *Kennedy* [2016] UKSC 6 (above at [52]). He stated (case references omitted):

'The duties and responsibilities of expert witnesses in civil cases include the following:

1. Expert evidence presented to the court should be, and should be seen to be, the independent product of the expert uninfluenced as to form or content by the exigencies of litigation.
2. An expert witness should provide independent assistance to the court by way of objective unbiased opinion in relation to matters within his expertise. An expert witness in the High Court should never assume the role of an advocate.
3. An expert witness should state the facts or assumption on which his opinion is based. He should not omit to consider material facts which could detract from his concluded opinion.
4. An expert witness should make it clear when a particular question or issue falls outside his expertise.
5. If an expert's opinion is not properly researched because he considers that insufficient data is available, then this must be stated with an indication that the opinion is no more than a provisional one. In cases where an expert witness who has prepared a report could not assert that the report contained the truth, the whole truth and nothing but the truth without some qualification, that qualification should be stated in the report.
6. If, after exchange of reports, an expert witness changes his view on a material matter having read the other side's expert's report or for any other reason, such change of view should be communicated (through legal representatives) to the other side without delay and when appropriate to the court.
7. Where expert evidence refers to photographs, plans, calculations, analyses, measurements, survey reports or other similar documents, these must be provided to the opposite party at the same time as the exchange of reports.'

Challenging expert evidence—In *Tui UK Ltd v Griffiths* [2023] UKSC 48, [2023] 3 WLR 1204 seven exceptions are listed to the principle that a material witness, including an expert, must be challenged by cross-examination. The extent to which it will be applied in family cases remains to be seen. In *A Local Authority v AX* [2025] EWFC 137, [2025] 2 FLR 717 MacDonald J stated that, where a test of necessity is set out in the rules, there is no basis for overlaying it with concepts of rarity or exceptionality and went to say:

'*Tui UK Ltd v Griffiths* and each of the decisions referred to above emphasise that the general rule that a party is required to challenge by cross-examination the evidence of any witness on a material point which that party wishes to submit should not be accepted by the court is not a rigid one. The overarching question remains whether, viewed overall, the hearing is fair. FPR r.25.9(2) reflects this position in providing that the question of whether an expert attends the hearing falls to be decided by reference to the test of whether such attendance is necessary in the interests of justice. As Peter Jackson LJ stated in *Re B (A Child)* [[2018] EWCA Civ 2127, [2018] All ER (D) 146 (Oct)], what is important is substance, not form.'

Court's approach to expert evidence: cardinal principles—There are three cardinal principles for the court when assessing the weight and significance of expert evidence in any particular case:

- (1) the expert advises, but the judge decides: see eg *Re B (Care: expert witnesses)* [1996] 1 FLR 667 at 669 in which Ward LJ cited the words of Lord President Cooper in *Davie v Magistrates of Edinburgh* [1953] SC 34 at 40, '... the parties have invoked the decision of a judicial tribunal and not an oracular pronouncement by an expert';

- (2) the judge must give (sufficiently cogent) reasons if they reject an expert's evidence on a matter that lies within the expert's expertise: see eg *Re B (Split hearing: jurisdiction)* [2000] 1 FLR 334 at 339 and 340, Otton LJ citing passages from *Bolitho (decd) v City and Hackney Health Authority* [1997] 4 All ER 771 (HL) and *Flannery v Halifax Estate Agencies* [2000] 1 All ER 373; and see generally *English v Emery Reimbold and Strick Ltd* [2002] EWCA Civ 605, [2002] 3 All ER 385. As a rule of thumb, it is suggested it may be easier for a judge to depart from an expert's recommendation in matters of 'softer' social science (eg the opinion of a social worker or Cafcass officer as to the overall best interests of a child) than in matters of 'hard' science (eg a structural engineer's calculations), with medical opinion often lying somewhere between the two;
- (3) the judge must assess expert evidence within the context of the evidence as a whole, including the evidence of lay witnesses of fact (just as the judge must assess the evidence of lay witnesses of fact within the context of the evidence as a whole, including the expert evidence): see eg *A County Council v K, D and L* [2005] EWHC 144 (Fam), [2005] 1 FLR 851 at [41] and [63].

Application of *R v Cannings* to care proceedings—In *Re U (Serious injury: standard of proof)*; *Re B* [2004] EWCA Civ 567, [2004] 2 FLR 263 the EWCA determined two cases which begged the question: what were the implications, if any, for care proceedings of what had emerged in *R v Cannings* [2004] EWCA Crim 1, [2004] 1 All ER 725, the latest in a line of high profile cases in which mothers were charged with/convicted of killing their own children. Butler-Sloss P stated at [23]:

'We adopt the following:

- (i) The cause of an injury or an episode that cannot be explained scientifically remains equivocal.
- (ii) Recurrence is not in itself probative.
- (iii) Particular caution is necessary in any case where the medical experts disagree, one opinion declining to exclude a reasonable possibility of natural cause.
- (iv) The court must always be on guard against the over-dogmatic expert, the expert whose reputation or amour propre is at stake, or the expert who has developed a scientific prejudice
- (v) The judge in care proceedings must never forget that today's medical certainty may be discarded by the next generation of experts or that scientific research will throw light into corners that are at present dark.'

Protection against naming experts—Where there are criticisms of professionals and applications for reporting restriction orders in relation to their identity, reference needs to be made to *Abbasi v Newcastle-Upon-Tyne NHS Hospitals Foundation Trust* [2025] UKSC 15, [2025] 2 FLR 322. In summary, the UKSC held that restrictive injunctions of this nature should be of limited duration which would usually be until the end of the proceedings; if a further injunction is sought, the majority held, the application should be supported by specific evidence and the need for any restriction of freedom of expression under Art 10 must be established convincingly through claims brought by the clinicians themselves, relying on their own relevant cause or causes of action.

4 Hearsay

8.45 Hearsay generally—CEA 1995, s 1 states 'in civil proceedings evidence shall not be excluded on the ground that it is hearsay.' 'Hearsay' is defined as 'a statement made otherwise than by a person giving oral evidence in the proceedings which is tendered as evidence of the matters stated' (CEA 1995, s 1(2)). 'Civil proceedings' for the purposes of the 1995 Act means 'civil proceedings, before any tribunal, in relation to which the strict rules of evidence apply, whether as a matter of law or by agreement of the parties' (CEA 1995, s 1.1). For these purposes, therefore, the CEA 1995 will apply to family proceedings.

Even though hearsay evidence is admissible, it must still be scrutinised carefully in order to ensure that the overall justice of the case is maintained; thus, the court must consider the extent to which it can be relied on properly and fairly¹. In deciding upon the weight that will be attached to hearsay evidence, the court will take into account the factors in the CEA 1995, s 4². Where a case depends entirely on hearsay evidence, the court will be particularly careful before concluding that it can be given any weight; however, there is no rule of law which prohibits a court from giving weight to hearsay evidence merely because it is uncorroborated and cannot be tested or contradicted by the opposing party³.

- ¹ See *Re N (Child abuse: Evidence)* [1996] 2 FLR 214, CA and Butler-Sloss LJ in *Re P (Child: compellability as witness)* [1991] FCR 337 at 344; *sub nom R v B CC, ex p P* [1991] 2 All ER 65 at 72, where she said: 'A court presented with hearsay evidence has to look at it anxiously and consider carefully the extent to which it can properly be relied upon'.
- ² *Re W (Fact Finding: Hearsay Evidence)* [2013] EWCA Civ 1374, [2014] 2 FLR 703 at [23]. CEA 1995 is set out at para **8.22**.
- ³ *Welsh v Stokes* [2007] EWCA Civ 796, [2008] 1 WLR 1224 Dyson LJ at [23]. A passing motorist (who was not identified or called) told another motorist (who was called) that he had seen that the horse 'reared up, then the girl had fallen off and the horse had fallen onto her'; the judge was entitled to rely on the first driver's hearsay evidence. See also *Re P (Sexual Abuse Finding of Fact Hearing)* [2019] EWFC 27 at [267]–[269] in relation to the uncorroborated and hearsay evidence of a child complaining of sexual abuse.

8.46 Hearsay: children proceedings—The Children (Admissibility of Hearsay Evidence) Order 1993 provides: 'In ... (b)(i) family proceedings, and (ii) civil proceedings under the Child Support Act 1991 in a magistrates' court, evidence given in connection with the upbringing, maintenance or welfare of a child shall be admissible notwithstanding any rule of law relating to hearsay.' For the purposes of ChA 1989, 'family proceedings' is defined by ChA 1989, s 8(3)¹.

- ¹ The definition extends to proceedings: (a) under the inherent jurisdiction of the High Court in relation to children; and (b) under the enactments mentioned in ChA 1989, s 8(4) but does not include proceedings on an application for leave under s 100(3). The enactments under ChA 1989, s 8(4) are: (a) Pts I, II and IV of the 1989 Act; (b) MCA 1973; (ba) CPA 2004, Sch 5; (d) ACA 2002; (e) DPMCA 1978; (ea) CPA 2004, Sch 6; (g) MPPA 1984, Pt III; (h) FLA 1996; (i) CDA 1998, ss 11 and 12; (j) FGMA 2003 Sch 2, Pt 1 (other than para (3) of that Schedule).

8.47 Hearsay: other family proceedings—The admission of hearsay evidence in other family proceedings will be governed by FPR 2010, Pt 23 and the terms of the CEA 1995. FPR 2010, Pt 23 is in almost identical terms to CPR 1998, Pt 33. CEA 1995, s 2(1) provides:

- (1) A party proposing to adduce hearsay evidence in civil proceedings shall, subject to the following provisions of this section, give to the other party or parties to the proceedings –
- (a) such notice (if any) of that fact, and
 - (b) on request, such particulars of or relating to the evidence, as is reasonable and practicable in the circumstances for the purpose of enabling him or them to deal with any matters arising from its being hearsay.

Section 2(2) then goes on to provide for rules of court to be made in relation to how and when notice should be given (and when it need not be). Those rules, for the purposes of family proceedings, are FPR 2010, rr 23.2 and 23.3 and can be summarised as follows:

- (i) where a witness is to be called to give oral evidence or a witness statement is to be filed on behalf of a witness who is not giving oral evidence, the serving of a witness statement on the other parties will amount to compliance with the CEA 1995, s 2(1)(a)¹;
- (ii) in cases that do not fall within (i) above, the party wishing to adduce the hearsay evidence must serve a notice on the other parties (a) identifying the hearsay evidence, (b) stating that reliance is to be placed on the hearsay statement and (c) giving reasons why the witness will not be called²;
- (iii) the party wishing to rely on the hearsay evidence must (a) serve the notice no later than the latest date for serving witness statements; and (b) if the hearsay is to be in a document, supply a copy to any party who requests it³;
- (iv) the requirements for notice do not apply: (a) to evidence at hearings other than final hearings, (b) to an affidavit or witness statement which is to be used at the final hearing, but which does not contain hearsay evidence, or (c) where the requirement is excluded by a practice direction⁴.

CEA 1995, s 2(4) provides that a failure to comply with notice provisions does not affect the admissibility of the evidence but may be taken into account by the court: (a) in considering the exercise of its powers with respect to the course of proceedings and costs, and (b) as a matter adversely affecting the weight to be given to the evidence in accordance with s 4 (see para **8.48**, below).

Where hearsay evidence is to be adduced and one of the other parties wishes to cross-examine the maker of the hearsay statement, an application for permission to cross-examine must be made within 14 days of the date upon which notice to adduce the hearsay evidence was given⁵. The court then has a discretion as to whether to direct the maker of the hearsay statement to attend to be cross-examined⁶.

Specific provision is made in the CEA 1995, s 6(1) and (2)⁷ in relation to the extent to which reliance can be placed on previous statements that have been made by a witness.

¹ FPR 2010, r 23.2(1). Where the witness is not to be called to give oral evidence, the party serving the witness statement must inform the other parties that the witness is not being called and must give the reason why that is so: FPR 2010, r 23.2 (2). CEA 1995, s 2(3) provides that 'Subsection (1) may also be excluded by agreement of the parties; and compliance with the duty to give notice may in any case be waived by the person to whom notice is required to be given'.

² FPR 2010, r 23.2(3).

³ FPR 2010, r 23.2(4).

⁴ FPR 2010, r 23.3.

⁵ FPR 2010, r 23.4.

⁶ In *Green v Adams* [2017] EWFC 24, [2017] 2 FLR 1413 at [20], Mostyn J said of the evidence that the father wished to give about having attended to open a bank account for the child:

'... this was hearsay where no attempt had been made to comply with the written notice provisions specified in section 2 of the Civil Evidence Act 1995 and Family Procedure Rules 23.2. The father's evidence had not been reduced anywhere to writing and it is completely unacceptable for the mother to be ambushed with this evidence in this way. Pursuant to section 4 of the Act I attribute no weight to this evidence and disregard it altogether.'

⁷ See para 8.16, above.

8.48 Weight of hearsay evidence—If evidence is hearsay, it is expected that a judge should state that is so and should also make specific findings as to its weight, in accordance with CEA 1995, s 4¹ which states that the court must 'have regard to any circumstances from which any inference can reasonably be drawn as to the reliability or otherwise of the evidence' and must have particular regard to the following:

- (a) whether it would have been reasonable and practicable for the party by whom the evidence was adduced to have produced the maker of the original statement as a witness;
- (b) whether the original statement was made contemporaneously with the occurrence or existence of the matters stated;
- (c) whether the evidence involves multiple hearsay;
- (d) whether any person involved had any motive to conceal or misrepresent matters;
- (e) whether the original statement was an edited account, or was made in collaboration with another or for a particular purpose;
- (f) whether the circumstances in which the evidence is adduced as hearsay are such as to suggest an attempt to prevent proper evaluation of its weight.'

¹ See *Diamond v Secretary of State for the Home Department* [2020] EWHC 3313 (Admin) [48]–[50], per Calver J.

8.49 Where party A wishes to rely on hearsay evidence but does not propose to call the witness to give oral evidence and party B wishes to call evidence to attack the credibility of that witness, party B must give notice of that intention to party A. The notice to do so must be given within 14 days after the date on which a hearsay notice relating to the hearsay evidence was served by party A¹. The right of a party in the position of party B to apply to attack the credibility of a hearsay witness is given by CEA 1995, s 5(2)².

¹ See FPR 2010, r 23.5.

² See para **8.15**, above.

5 The evidence of children

8.50 The evidence of children—The question of whether a child should give direct oral evidence is governed by statute and case law. ChA 1989, s 95 provides that, in any proceedings in which a court is considering whether to make an order under Part IV or V of that Act, the court may order the child concerned to attend such stages of the proceedings as may be specified in an order. ChA 1989, s 96 provides that, where a child who is called as a witness in any civil proceedings does not, in the opinion of the court, understand the nature of the oath, the child may be heard by the court if the provisions of s 96(2) are satisfied. Where a child does give evidence, specific arrangements will be made for that to occur in accordance with the FPR 2010. Where a child does not give evidence, any evidence by others of what a child has said will be hearsay. Where a child has given an ABE (Achieving Best Evidence) interview, there is case law about the importance of adhering to guidance¹.

¹ The governing authority in relation to children giving evidence in family proceedings is *Re W (Children)* [2010] UKSC 12, [2010] 1 FLR 1485. Following that case, the working party of the Family Justice Council issued 'Guidelines in Relation to Children Giving Evidence in Family Proceedings' in 2011 (www.judiciary.uk/guidance-and-resources/guidelines-in-relation-to-children-giving-evidence-in-family-proceedings/). The duty to consider how a child will give evidence and any participation directions/special measures that should be put in place are to be found in FPR 2010, Pt 3A. The case law relating to the adherence to ABE guidance is summarised in *Re SR* [2018] EWCA Civ 2738 at [30]. The ABE guidance ('Achieving Best Evidence in Criminal proceedings') was most recently updated on 21 June 2023. In *London Borough of Hammersmith and Merton v G, H, A, B and C* [2024] EWHC 2200 (Fam), [2025] 1 FLR 762, Keehan J gave guidance about the interplay between criminal and family proceedings, including that: 'It is essential for the fair and effective operation of the family justice system and of the criminal justice system that there is open, regular and effective dialogue and co-operation between the parties to the care proceedings, most obviously with the local authority, and the police and/or the CPS.'

6 Other evidential principles

8.51 Judicial notice—where a fact is so well known or supported by such authority that it cannot reasonably be doubted, a judge may take 'judicial notice' of it. Put another way, the court should not lose sight of common sense¹.

¹ In *Re P (Sexual Abuse: Finding of Fact hearing)* [2019] EWFC 27 at [577] (having referred to the Report of the Inquiry into child abuse in Cleveland (1987, Cm 412), the Report of the Inquiry into the Removal of Children from Orkney in February 1991 and the ABE guidance), MacDonald J gives a list of 12 matters of which he takes judicial notice in relation to allegations of abuse that have been expressed by a child eg 'children, and especially young children, are suggestible, memory is prone to error and easily influenced by the environment in which recall is invited, etc. It is likely that the court will take judicial notice of statistics issued by the government in relation to the functioning of the family court (see, for instance 'National Statistics, Guide to Family Court Statistics' published on 21 December 2023). Similarly, Cafcass issues statistical information that can be seen at www.cafcass.gov.uk/about-us/our-data. In financial remedy proceedings the court will take judicial notice of the figures produced by Duxbury and Ogden tables and, although the use of Duxbury tables will be more usual, other methods may be used in an appropriate case (see eg *Tattersall v Tattersall* [2018] EWCA Civ 1978, [2019] 1 FLR 470 per Moylan LJ at [42]). As to not losing sight of common sense, Munby P said in *Re J (A child)* [2013] EWHC 2694 (Fam), [2014] 1 FLR 523:

'The court has to proceed on the basis of the evidence, though this does not of course mean that one needs the evidence of child psychiatrists or specific evidence of, for instance, psychological harm to the child. The court can use its common sense: see *In re M and N (Minors) (Wardship: Publication of Information)* [1990] Fam 212, 226, and *Kelly v British Broadcasting Corp'n* [2001] Fam 59, 85.'

8.52 Issue estoppel—There is no strict rule of issue estoppel in children cases (where the application of the principle has had to be considered, in particular, in relation to past findings of fact); however, a decision to allow past findings to be relitigated must be a reasoned one. In other proceedings, issue estoppel may arise where a particular issue forming a necessary ingredient in a cause of action has been litigated and decided and, in subsequent proceedings between the same parties involving a different cause of action to which the same issue is relevant, one of the parties seeks to reopen that issue. Except in special circumstances where this would cause injustice, issue estoppel will bar the raising in subsequent proceedings of points which: (i) were not raised in the earlier proceedings or (ii) were raised but unsuccessfully¹.

¹ As to children proceedings, see the judgments of Peter Jackson LJ in *Re E (Children: Reopening Findings of Fact)* [2019] EWCA Civ 1447, [2020] 1 FLR 162 at [28]–[34] and in *Re CTD (A Child: Rehearing)* [2020] EWCA Civ 1316, [2021] 1 FLR 868. As to other proceedings, see the judgment of Lord Sumption in *Virgin Atlantic Airways Ltd v Zodiac Seats UK Ltd* [2013] UKSC 36, [2014] 1 AC 160, at [22]–[26] (where he refers to the opinion of Lord Keith in *Arnold v Westminster Bank Plc* [1991] 2 AC 93); reference is made by Mostyn J to the judgment of Lord Sumption in para [5](ii) of his judgment in *R (on the application of Mandic-Bozic) v British Association for Counselling and Psychotherapy* [2016] EWHC 3134 (Admin).

8.53 Similar fact/propensity evidence—In considering whether a propensity exists, the court must be satisfied based on proven facts that propensity has been proven in each case to the requisite civil standard. The proven facts must form a sufficient basis to sustain a finding of propensity, but each individual item of evidence does not need to be proved¹.

¹ See the judgment of Peter Jackson LJ in *R v P (Children: Similar Fact Evidence)* [2020] EWCA Civ 1088, [2021] 1 FLR 652 at [26] and also *Re S (A Child)* [2017] EWCA Civ 44. In *F v M* [2021] EWFC 4, [2021] All ER (D) 69 (Jan), Hayden J considered how to approach similar fact evidence in a case involving allegations of coercive control.

8.54 Presumptions—Two presumptions may be of particular relevance in family proceedings. First, the presumption that a child born to a woman during a subsisting marriage is presumed to be a child of the parties to the marriage; The Family Law Reform Act 1969, s 26 provides that the presumption may be rebutted on the balance of probabilities. Second, the presumption of death that may arise by statute under the Presumption of Death Act 2013¹.

¹ As to the presumption of legitimacy, see *MS v RS, BT, AS and BS* [2020] EWFC 30, [2020] 2 FLR 689 at [49], per MacDonald J. As to the presumption of death, see *Re P (Presumption of Death)* [2021] EWHC 3099 (Fam), per Poole J.

8.55 Identification evidence—Where courts are dealing in care (and other family proceedings) with controversial identification evidence, it is imperative that the court gives itself a ‘Turnbull direction’¹.

¹ See *EH v Greenwich* [2010] EWCA Civ 344, [2010] 2 FLR 661 at [82] (per Wall LJ). At [41] of the judgment in that case Baron J sets out the terms of the Turnbull direction, based on the judgment of Widgery LCJ in *R v Turnbull* [1977] QB 224 at page 228.

8.56 Evidence of lies—The well-known Lucas direction is not required in every case and should not be used by a court as part of a tick-box exercise. If there is any question of such a direction being required, it is good practice for the judge to seek counsel’s submissions to identify: (i) the deliberate lies upon which reliance is placed; (ii) the significant issue to which they relate; and (iii) on what basis it can be determined that the only explanation for the lie is guilt¹.

¹ See the judgment of Macur LJ in *A, B and C (Children)* [2021] EWCA Civ 451 at [54]–[58]. Lucas ‘requires a deliberate untruth before it can be of any probative value’ (*Re E (A Child: Care Proceedings)*

Fact Finding) [2023] EWCA Civ 858, [2024] 1 FLR 396 at [37]. The full terms of the Lucas direction (*R v Lucas (Ruth)* [1981] QB 720) are set out by Macur LJ at para 55 of her judgment. In cases where repeated accounts of events are given, the court must think carefully about the significance or otherwise of any reported discrepancies – see *Lancashire CC v C, M and F (Children: Fact Finding Hearing)* [2014] EWFC 3 and *A Local Authority v M, SF* [2024] EWFC 35. In *CK (A child: Fact Finding)* [2022] EWCA Civ 952 at [46], Baker LJ said:

‘A lie told by a witness in a family case may undermine the credibility of the witness and in some instances be direct evidence of culpability. The principle in *Lucas* is that a fact-finding tribunal must bear in mind that a person may lie for many reasons and the fact that they have lied about one or more things does not necessarily mean that they have lied about other things. When assessing the forensic significance of a lie or lies told by a witness, a judge must do more than merely cite the case of *Lucas*. He or she must consider the probative weight to be attached to the lies in the context of the totality of the evidence, bearing in mind the *Lucas* principle.’

8.57 Public, bankers’ and business/public authority documents—Specific statutory provision has been made in relation to documents that fall into each of those three classes (public, bankers and business documents). In relation to public documents some examples are:

- (i) in circumstances defined by the Births and Deaths Registration Act 1953, s 34 an entry or a certified copy of an entry of a birth or death in a register, or in a certified copy of a register, will be evidence of the birth or death;
- (ii) every document purporting to be sealed or stamped with the seal or stamp of the Senior Courts or of any office of the Senior Courts will be received in evidence in all parts of the United Kingdom without further proof¹.

¹ See SCA 1981, s 132.

8.58 As to banking records, the Bankers’ Books Evidence Act 1879 provides that, subject to the provisions of the Act, a copy of any entry in a banker’s book will, in all legal proceedings, be received as prima facie evidence of such entry, and of the matters, transactions, and accounts therein recorded¹. An application for an order under the 1879 Act would be made under FPR 2010, r 21.2².

¹ See BBEA 1879, s 3. BBEA 1879, s 7 provides wide powers for the court to order the production of banking information; it states:

‘On the application of any party to a legal proceeding a court or judge may order that such party be at liberty to inspect and take copies of any entries in a banker’s book for any of the purposes of such proceedings. An order under this section may be made either with or without summoning the bank or any other party, and shall be served on the bank three clear days before the same is to be obeyed, unless the court or judge otherwise directs.’

The phrase ‘bankers books’ has been given an extended meaning as a result of the Banking Act 1979, Sch 1, para 6: ‘Expressions in this Act relating to “bankers’ books” include ledgers, day books, cash books, account books and other records used in the ordinary business of the bank, whether those records are in written form or are kept on microfilm, magnetic tape or any other form of mechanical or electronic data retrieval mechanism.’

² The equivalent rule in the CPR 1998 is r 31.17.

8.59 In relation to business and public authority documents, CEA 1995, s 9 provides:

- (1) A document which is shown to form part of the records of a business or public authority may be received in evidence in civil proceedings without further proof.
- (2) A document shall be taken to form part of the records of a business or public authority if there is produced to the court a certificate to that effect signed by an officer of the business or authority to which the records belong. For this purpose –
 - (a) a document purporting to be a certificate signed by an officer of a business or public authority shall be deemed to have been duly given by such an officer and signed by him; and

- (b) a certificate shall be treated as signed by a person if it purports to bear a facsimile of his signature.
- (3) The absence of an entry in the records of a business or public authority may be proved in civil proceedings by affidavit of an officer of the business or authority to which the records belong.
- (4) In this section 'records' means records in whatever form.

8.60 Computer generated material—The CEA 1995 restored the common law position concerning the presumption that machines function properly (*Castle v Cross*¹). The effect has been that machine-generated material has been treated as real evidence (see **8.32**) and admitted as original evidence.

¹ [1984] 1 WLR 1372, [1985] 1 All ER 87. In *Castle*, the following extract from *Phipson on Evidence* (Sweet and Maxwell, 13th edn, 1982) was approved by Stephen Brown LJ, sitting in the divisional court: 'In the absence of evidence to the contrary, the courts will presume that mechanical instruments were in order at the material time'. How, if at all, this will be affected by the events that have followed *Alan Bates v The Post Office (No 6 Horizon Issues)* (Rev 1) [2019] EWHC 3408 (QB) – and the proceedings that followed – remains to be seen.

8.61 Evidence of convictions—CEA 1968, s 11 provides:

'the fact that a person has been convicted of an offence by or before any court in the United Kingdom or of a service offence (anywhere) shall (subject to subsection (3) below) be admissible in evidence for the purpose of proving, where to do so is relevant to any issue in those proceedings, that he committed that offence, whether he was so convicted upon a plea of guilty or otherwise and whether or not he is a party to the civil proceedings; but no conviction other than a subsisting one shall be admissible in evidence by virtue of this section¹.'

Thus, it applies to where: (i) there has been a conviction; (ii) the conviction was by or before a UK court or of a service offence (as defined by the Armed Forces Act 2006); (iii) the offence is relevant to the civil proceedings and (iv) the conviction is subsisting.

Section 11(2) provides that, where a person has been convicted before a UK court or of a service offence, he will be taken to have committed that offence, unless the contrary is proved². Section 11(2)(b) provides for the admission of documents to prove the conviction³.

Case law gives guidance in relation to foreign convictions: see especially *W-A (Children: Foreign Conviction)* [2022] EWCA Civ 1118, [2023] 1 FLR 369 in which Peter Jackson LJ said at [50]–[53]:

'The rule in *Hollington v Hewthorn* does not apply in family proceedings as I have defined them because such a rule is incompatible with the welfare-based and protective character of the proceedings. In family proceedings all relevant evidence is admissible. Where previous judicial findings or convictions, whether domestic or foreign, are relevant to a person's suitability to care for children or some other issue in the case, the court may admit them in evidence. The effect of the admission of a previous finding or conviction is that it will stand as presumptive proof of the underlying facts, but it will not be conclusive and it will be open to a party to establish on a balance of probability that it should not be relied upon. The court will have regard to all the evidence when reaching its conclusion on the issues before it ... As Leggatt J said in the civil context of *Rogers v Hoyle* at [27], the modern approach is that judges can be trusted to evaluate evidence in a rational manner, and that the ability of tribunals to find the true facts will be hindered and not helped if they are prevented from taking relevant evidence into account by exclusionary rules. This is all the more so in family proceedings, where exclusionary rules such as estoppel, *res inter alios acta* and *Hollington v Hewthorn* do not apply because they would not serve the interests of children and their families or the interests of justice.'

¹ The section was considered in *Stupple v Royal Insurance Co Ltd* [1971] 1 QB 50, [1970] 3 All ER 230 by Lord Denning MR and Buckley LJ. In *Taylor v Taylor* [1970] 2 All ER 609 Davies LJ expressed views consistent with the opinion of Lord Denning MR that the section 'does not merely shift the burden of proof. It is a weighty piece of evidence of itself'.

² Thus, the effect of the section is to reverse the previous 'rule' in *Hollington v Hewthorn & Co Ltd* [1943] KB 587, [1943] 2 All ER 35. In *Wolverhampton City Council v JA* [2017] EWFC 62 the father had been held by a judge in criminal proceedings to be unfit to plead and, on that basis, the jury was

not required to return a verdict but found that he did the act alleged; at [238] of the family judgment, Keehan J said: 'I am satisfied that the provisions of [CEA 1968] s 11(2)(a) do not apply to a finding by a jury that a defendant "did the act"'.³

³ It states:

'Without prejudice to the reception of any other admissible evidence for the purpose of identifying the facts on which the conviction was based, the contents of any document which is admissible as evidence of the conviction, and the contents of the information, complaint, indictment or charge-sheet on which the person in question was convicted, shall be admissible in evidence for that purpose.'

Subsection 11(4) provides for the admission of copies of documents that prove the conviction. In *Re W (Care proceedings: Litigation capacity)* [2008] EWHC 1188 (Fam), [2010] 1 FLR 1176 a father had pleaded guilty to an offence relating to a leg fracture to a child but there was doubt as to his litigation capacity at the time (see para [11] of the judgment); McFarlane J concluded that the fact-finding exercise should continue in the family proceedings due to the importance of identifying the truth of what had occurred.

7 Miscellaneous evidential considerations

8.62 Foreign evidence—It has been the longstanding practice of the family courts to permit a party or a witness to give evidence from abroad. In recent years this has typically been by video link. This is permitted by r 22.3¹. The most recent guidance on taking and giving evidence by video link from abroad was published on 1 August 2023 - www.gov.uk/guidance/taking-and-giving-evidence-by-video-link-from-abroad.

¹ There is no reported example of this ever having caused any difficulties or problems with any other State. There is a different practice in the tribunals: see *Nare (evidence by electronic means) Zimbabwe* [2011] UKUT 00443 (IAC), [2012] Imm AR 207 and *Agbabiaka (evidence from abroad: Nare guidance)* [2021] UKUT 286 (IAC). Decisions of the Upper Tribunal are not binding on the family courts and different considerations apply; in particular, in respect of proceedings concerning children, 'the general principle that any delay in determining the question is likely to prejudice the welfare of the child' (ChA 1989, s 1(2)). This explains the approach taken in the family courts, which has not changed since the decision in *Nare*. In these circumstances, unless and until there is an appellate decision to the contrary, the established approach in family proceedings should continue to be followed rather than the decision in *SA v AA* [2023] EWHC 2016 (Fam).

8.63 Foreign Law—Where a party intends to put in evidence a finding on a question of foreign law the provisions of FPR 2010, r 23.7 must be followed¹.

¹ The party seeking to rely on the foreign law must give notice of that intention within the time stated in FPR 2010, 23.7(3) (21 days as defined by that rule) and must (a) specify the question on which the finding was made, and (b) enclose a copy of a document where it is reported or recorded.

8.64 Evidence of those (a) for whom English is not their first language, (b) who cannot read and (c) who cannot sign a statement/affidavit—FPR 2010, PD22A, para 8.2 provides in relation to statements and affidavits that 'where the affidavit/statement is in a foreign language – (a) the party wishing to rely on it must: (i) have it translated; and (ii) must file the foreign language affidavit/statement with the court; and (b) the translator must sign the translation to certify that it is accurate.'¹ Case law deals with the costs of translation that may arise². PD22A, para 7 makes provision in relation to those who cannot read or sign a statement/affidavit.

¹ In *NN v ZZ* [2013] EWHC 2261 (Fam), [2016] 4 WLR 9 at [60], Peter Jackson J stated:

'(1) An affidavit or statement by a non-English-speaking witness must be prepared in the witness's own language before being translated into English. This is implicit from Practice Direction 22A of the Family Procedure Rules 2010, paragraph 8.2 of which states ... [the judge then set out the terms of the para, as above and continued:] ... (2) There must be clarity about the process by which a statement has been created. In all cases, the statement should contain an

explanation of the process by which it has been taken: for example, face-to-face, over the telephone, by Skype or based on a document written in the witness's own language. (3) If a solicitor has been instructed by the litigant, s/he should be fully involved in the process and should not subcontract it to the client. (4) If presented with a statement in English from a witness who cannot read or speak English, the solicitor should question its provenance and not simply use the document as a proof of evidence. (5) The witness should be spoken to wherever possible, using an interpreter, and a draft statement should be prepared in the native language for them to read and sign. If the solicitor is fluent in the foreign language, then it is permissible for him/her to act in the role of the interpreter. However, this must be made clear either within the body of the statement or in a separate affidavit. (6) A litigant in person should where possible use a certified interpreter when preparing a witness statement. (7) If the witness cannot read or write in their own native language, the interpreter must carefully read the statement to the witness in his/her own language and set this out in the translator's jurat or affidavit, using the words provided by Annexes 1 or 2 to the Practice Direction. (8) Once the statement has been completed and signed in the native language, it should be translated by a certified translator who should then either sign a jurat confirming the translation or provide a short affidavit confirming that s/he has faithfully translated the statement. (9) If a witness is to give live evidence either in person or by video-link, a copy of the original statement in the witness's own language and the English translation should be provided to them well in advance of the hearing. (10) If a statement has been obtained and prepared abroad in compliance with the relevant country's laws, a certified translation of that statement must be filed together with the original document.'

² In *Re Z (Public law: Translation Costs)* [2017] EWCA Civ 157, [2018] 1 FLR 956 at para 13, Macur LJ said:

'[13] Reviewing the statutory provisions, guidance and jurisprudence to which he had been referred, His Honour Judge Oliver concluded in para [81] that: "So, drawing all these points together, I see a clear structure for the costs of interpretation and translation: (a) Interpretation in court is the responsibility of HMCTS (b) Out of court interpretation falls to an individual party's public funding certificates (c) The cost of translating pre-proceeding documents falls to the local authority in any event (LAA Guidance on Remuneration of Expert Witnesses paragraph 6.21) (d) Only those documents which are necessary should be translated (Re L) (e) Which documents need to be translated is a matter which needs to be determined during the case (and probably done on a Section of the Bundle basis ...) (f) The determination of which document should be translated has to be made by the judge (g) Once that decision has been made, the burden of paying for the translation of a document shall fall on the party who produces it."

[14] Rightly, it seems to me, the focus of counsel's submissions before this court have focused on (g) above. The judge's conclusions (a) and (b) are well founded in the judgment in *Re C (A Child) (Care Proceedings: Deaf Parent)*; Practice Note [2014] EWCA Civ 128, [2014] 1 WLR 2495, *sub nom Re C (Care Proceedings: Parents with Disabilities)* [2015] 1 FLR 521. The Legal Aid Agency guidance as to payment for translation of any relevant/necessary documents created by the local authority prior to proceedings being issued states the obvious and underlies conclusion (c). Conclusion (d) is decided by reference to *Re L (Procedure: Bundles: Translation)* [2015] EWFC 15, [2015] 1 FLR 1417. Conclusions (e) and (f) involve practical application of necessary case management decisions. My only observation is that (f) is too broadly drawn; I consider it is implicit in paras [69]–[71] inclusive of the judgment in the court below that disputes as to which documents are to be translated will be resolved by the judge in those situations in which there is disagreement between the parties, or likelihood that the Legal Aid Agency would not accept the disbursement to be reasonably incurred.

[15] The judge's determination as to conclusion (g) was based on three points: benefit; the operation of the Standard Civil Contract seen as in accord with the European Directive on Legal Aid 13385/02; and Art 6 of the European Convention for the Protection of Human Rights and Fundamental Freedoms 1950 ...

[31] In this respect I well understand the judge's instinctive view that the party which bears the burden of proof in establishing the need for State intervention should translate documents as may be necessary to establish their case, subject to the caveat that: "... it is essential to focus on the forensic context ... it is necessary for K to understand the case as a whole and to be aware of the important substance – not the fine details – of the various other witness statements, reports and assessments" (See *Re L (Procedure: Bundles: Translation)* [2015] EWFC 15, [2015] 1 FLR 1417, at para [32] and [35].)

[32] However, the judge's rationale cannot withstand those situations where documents are produced by one party, against interest, but in observance of the public interest of disclosure in proceedings concerning the welfare of a child, even at the threshold stage. These reports are not "for the benefit" of the party that produces it/them. Other documents may support the local authority in one respect but the parent in another. There may be a "shared forensic interest" as identified in *Calderdale Metropolitan Borough Council v S and the Legal Services Commission*

[2004] EWHC 2529 (Fam), [2005] 1 FLR 751. That is, it is impossible to state authoritatively that any documents produced by one party or another at whatever stage in the proceedings will be in support of their case.

[33] There is no ambiguity in the relevant statutory provisions. Section 51(1) of the Senior Courts Act 1981 provides that “Subject to the provisions of this or any other enactment and to rules of court, the costs of and incidental to all proceedings in ... (ba) the family court ... shall be in the discretion of the court”. Section 51(3): “The court shall have full power to determine by whom and to what extent the costs are to be paid”.

[34] Section 26(1) of the Legal Aid, Sentencing and Punishment of Offenders Act 2012 expressly incorporates “reasonableness” into the treatment of costs, including those necessary in respect of translation, and s 30 ... ensures that the legal aid fund is not exempt from orders for costs. The Legal Aid Agency is unlikely to refuse to approve disbursement of costs for translation if indicated as “necessary for a just resolution of the case” by the judge (see *R (T) v Legal Aid Agency* [2013] EWHC 960 (Admin), [2013] 2 FLR 1315).

[35] Black LJ, in *JG v Lord Chancellor and Others* [2014] EWCA Civ 656, [2014] 2 FLR 1218 analysed previous pertinent authorities and concluded at para [90] that: “... the court has a discretion as to what order is made as to the costs of instructing experts in family proceedings and that that discretion must be exercised bearing in mind all the circumstances of the particular case ... The careful examination of Bodey J and Ryder J of the various factors in play in the Calderdale case and the Lambeth case shows the importance of tailoring the order to the facts.” It is illogical to approach the costs of translation of documents as distinct from expert evidence.

[36] There can be no criticism of any judge who determines that, bearing in mind the circumstances of a particular case, the party bearing the burden of proof shall be responsible for translation costs of a relevant document. The circumstances of other cases may reasonably inform a view that the party which requires the translation should bear the cost. Both of these views may be reasonable in the context of the case in hand, but cannot be considered as determinative of the issue across all cases.

[37] To deal with an issue of translation costs devoid of context does not connote a reasonable exercise of judicial discretion. Whilst the promulgation of a court’s usual practice on the question creates certainty and may save some court time it could also lead to unfair demands upon either public (local authority and legal aid) or private financial resources.

[38] The application of FPR 2010, r 1.1(2) and (3) require collaboration between parties to avoid the prospect of time-consuming satellite litigation on the issue of identification of which documents, or parts of the same, it is necessary to translate and in summary or full, together with a non-partisan appraisal of which party it would be reasonable to invite the judge to order to pay, or contribute towards, the costs of the same.’

8.65 Evidence about immigration and asylum status—When seeking information about the immigration status of an individual, it will be necessary for the court to complete a Form EX660 and to comply with the ‘Protocol: Communicating with UK Visas and Immigration (UKVI) – family proceedings’ that was issued on 17 May 2018. Guidance has been given by case law in relation to the disclosure of asylum documentation¹. Evidence about proceedings that are taking place before the Immigration and Asylum Chambers of the First-tier or Upper Tribunals can be obtained by following the protocol that was issued on 19 July 2013².

¹ *Re G (Inherent Jurisdiction return- disclosure of Asylum documents)* [2022] EWHC 2134 (Fam), [2023] 1 FLR 317.

² ie The Protocol on Communications between judges of the Family Court and Immigration and Asylum Chambers of the First-tier Tribunal and Upper Tribunal.

8.66 Equal (and fair) treatment—In addition to applying the relevant parts of the FPR 2010, essential reading in any case where any issue arises as to how to achieve the equal treatment of those involved in any way with family proceedings must be the Equal Treatment Bench Book (ETBB)¹ and the relevant parts of the Advocates Gateway Toolkits². They are all available on the internet. Specific guidance has been given by case law as to how care proceedings should be approached where a parent has impaired hearing or deafness³ or has learning disabilities⁴. In relation to the instruction of an intermediary, see now *Re M (A Child: Intermediaries)* [2025] EWCA Civ 440. Key extracts are set out at **3.54**.

-
- ¹ The latest version of the ETBB can be found at: www.judiciary.uk/about-the-judiciary/diversity/equal-treatment-bench-book/.
- ² There are 20 toolkits (NB there is a kit 1A but not a kit 18): (1) Ground rules hearings; (1A) Case management in criminal cases; (2) General Principles from Research, Policy and Guidance; (3) Planning to question someone with autism; (4) Planning to question someone with learning disability; (5) Planning to question someone with hidden Disabilities; (6) Planning to question a child or young person; (7) Additional factors concerning children under seven; (8) Effective participation of young defendants; (9) Planning to question someone using a remote link; (10) Identifying vulnerability in witnesses; (11) Planning to question someone who is deaf; (12) Planning to question someone with a suspected or diagnosed mental health disorder; (13) Vulnerable witnesses in the family courts; (14) Using communication aids; (15) Witnesses and defendants with autism; (16) Intermediaries: Step by step; (17) Vulnerable witnesses in the civil courts; (19) Supporting participation in Courts and Tribunals and (20) Court of Protection.
- ³ *Re C (A Child) (Care Proceedings: Deaf Parent); Practice Note* [2014] EWCA Civ 128, [2014] 1 WLR 2495, *sub nom Re C (Care Proceedings: Parents with Disabilities)* [2015] 1 FLR 521 and see *Re A & B (Children) (Deaf Parent – Assessment and Practice)* [2021] EWFC 10.
- ⁴ *In Re D (Adoption) (No 3)* [2016] EWFC 1, [2017] 1 FLR 237 Munby P said at [27]:
 ‘the profoundly important of observations’ of Gillen J, as he then was, sitting in the Family Division of the High Court of Justice in Northern Ireland, in *Re G and A (Care Order: Freeing Order: Parents with a Learning Disability)* [2006] NIFam 8. Gillen J set out in 8 paragraphs some key points of principle that ‘must be taken into account by courts when determining cases such as this involving parents with a learning disability particularly where they parent children who also have a learning disability’. [Munby P attached as an annex at [164] the key extract from Gillen J’s judgment.]
-

Proof of Facts in Family Proceedings

8.67 This section contains:

- (1) Checklist: legal considerations at a fact-finding hearing;
- (2) Summary of the principles of law on topics set out in the Checklist
- (3) When to hold a fact-finding hearing in public law proceedings
- (4) When to hold a fact-finding hearing in private law proceedings
- (5) Re-opening a fact-finding decision
- (6) Appeals against findings of fact

1 Checklist: legal considerations at a fact-finding hearing

8.68 A checklist of legal topics that either will or may need to be considered in a fact-finding hearing in family proceedings is set out below. Where aspects of the law of evidence arising from those topics have been considered in ‘Evidence in Family Proceedings,’ (paras **8.26–8.66**, above) they are not repeated but the relevant paragraph is given. Although judgments will often contain a discrete section in which the applicable principles of law are set out, it is necessary for the judgment to demonstrate that the stated principles have been applied within the court’s analysis.

Checklist:

- (1) Burden of proof
- (2) Standard of proof
- (3) Not speculating
- (4) Not compartmentalising evidence: ‘the hermeneutical circle’
- (5) Importance of the evidence of the parents and family members
- (6) The fallibility of human memory and story creep
- (7) Inherent probabilities
- (8) Circumstantial evidence
- (9) Corroboration
- (10) Hearsay and the evidence of children (including ABE interviews)
- (11) Role of experts in fact-finding hearings
- (12) Similar-fact evidence

- (13) Criminal law concepts including good character
- (14) Lies (the 'Lucas' direction)
- (15) Identification evidence (the 'Turnbull' direction)
- (16) Demeanour and other matters the court directly senses during a hearing
- (17) A 'list of possible perpetrators'
- (18) The meaning of failure to protect
- (19) The meaning of 'domestic abuse' and 'controlling/coercive behaviour'
- (20) The meaning of sexual abuse.
- (21) Research material.
- (22) Disclosure of findings to third parties.
- (23) Risk assessment.
- (24) Costs.

2 Summary of the principles of law on topics set out in the Checklist

8.69 Burden of proof—The burden of proof rests on the party making the allegation in issue (eg *Re JK (A Child) (Domestic Abuse: Finding of Fact Hearing)* [2021] EWHC 1367 (Fam), [2022] 1 FLR 657 and *Re A and B (Children: 'Parental Alienation')* (No 5) [2023] EWHC 1864, [2024] 1 FLR 447).

The general principle is 'he who asserts must prove' (*Re H and R (Child sexual abuse: standard of proof)* [1996] 1 FLR 80, per Lord Nicholls). The court operates a binary system in which the only values are 0 and 1 – the fact either happened or it did not. If the party who bears the burden of proof fails to discharge it, the value of 0 is returned and the fact is treated as not having happened. If that party does discharge it, a value of 1 is returned and the fact is treated as having happened: *Re B (Children) (Sexual abuse: standard of proof)* [2008] UKHL 35, [2008] 2 FLR 141 at [2], per Lord Hoffman).

A case will be decided on the burden of proof alone only when a court is driven to do so and where, given the unsatisfactory nature of the evidence, no other course is open to the court (*Re A (Child)* [2020] EWCA Civ 1230, [2021] 1 FLR 815 at [58]).

It may amount to a reversal of the burden of proof if the court concludes that a respondent's failure to advance an innocent explanation for injuries of itself leads to an adverse finding against that parent: *Re M (Fact-Finding Hearing: Burden of Proof)* [2012] EWCA Civ 1580, [2013] 2 FLR 874. However, that decision should be read against the decision of the Court of Appeal in *Re M (Children: Findings of Fact)* [2024] EWCA Civ 1290, where Peter Jackson LJ said:

'that [argument that] the judge reversed the burden of proof in respect of the father by noting the lack of an account of an accident from either parent ... is a familiar argument, addressed in *Re BR (Proof of Facts)* [2015] EWFC 41 at [15]–[17] in this way. It would of course be wrong to apply a hard and fast rule that the carer of a young child who suffers an injury must invariably be able to explain when and how it happened if they are not to be found responsible for it. However, the absence of any history of a memorable event where such a history might be expected in the individual case may be very significant. Medical professionals, social workers and the court are entitled to take account, to whatever extent is appropriate in the individual case, of the lack of a history of injury from the carer of a young child. In the present case, the judge regarded the lack of any account from a carer as a factor, among others, that supported her conclusion. As [counsel for the] Guardian put it, consideration of the evidence does not amount to reversal of the burden of proof. In reality this aspect of the appeal is a complaint that the judge gave too much weight to the lack of an account. I reject that submission too. There is no indication that she gave undue prominence to this feature, still less that she did so to the extent that would entitle us to interfere.'

The discharge of the burden of proof is not restricted to a consideration only of the evidence called by the party who bears it: *Re K-K (children)* [2024] EWCA Civ 1025; if the facts of the case so justify, the absence of a satisfactory explanation from the respondent may form part of the totality of the evidence that the judge must evaluate when reaching a decision on the balance of probabilities: *Re M-B (Children)* [2015] EWCA Civ 1027.

A party seeking to substantiate a disputed allegation must adduce proper evidence in support of it. So for instance, if a local authority asserts that a parent does not acknowledge its concerns, it must prove that the matter of concern has the significance which the local authority attributes to it (*Re J (a child)* [2015] EWCA Civ 222 at [56]). When considering whether a party has fulfilled the

burden of proving disputed facts, the judge must take into account and consider each piece of evidence in the context of all the other evidence 'and, to use a metaphor, examine the canvas overall' (*Re J (a child)* (above) and *Re A (a child)* [2020] EWCA Civ 1230, [2021] 1 FLR 815 at [58]).

If a judge is considering making findings that differ to those alleged, they must ensure that the fairness of the process is not compromised, which will usually require notice to be given to the parties so that they can make submissions about it; see *A (No. 2) (Children: Findings of Fact)* [2019] EWCA Civ 1947, [2020] 1 FLR 755 in which Peter Jackson LJ stated at [108]:

'the situation in this case fell squarely within the sound guidance found in *Re G and B (Fact-Finding Hearing)* [2009] EWCA Civ 10, [2009] 1 FLR 1145 ... "if the judge is, as it were, to go 'off piste', and to make findings of fact which are not sought by the local authority or not contained in its schedule, then he or she must be astute to ensure; (a) that any additional or different findings made are securely founded in the evidence; and (b) that the fairness of the fact-finding process is not compromised".'

In public law proceedings, it is important to identify whether the court is being asked to limit itself to making findings of fact or whether the court is dealing both with factual findings and the fulfilment of the threshold criteria under ChA 1989, s 31(2). The local authority must demonstrate why certain facts, if proved, justify the conclusion that the child has suffered, or is at the risk of suffering, significant harm of the type asserted by the local authority. The local authority's evidence and submissions must set out the arguments and explain explicitly why it is said that, in the particular case, the conclusion that the child has suffered or is at risk of suffering significant harm indeed follows from the facts proved (Munby J in *Re A (a child)* [2015] EWFC 11, [2016] 1 FLR 1, as approved by Aikens LJ in *Re J (A Child)* [2015] EWCA Civ 222 and followed by King LJ in *L-W Children* [2019] EWCA Civ 159, [2019] 2 FLR 278).

8.70 Standard of proof—Save in very specific circumstances (eg contempt proceedings and applications for enforcement orders under ChA 1989, s 11J) the standard of proof in family proceedings is the civil standard, the balance of probabilities (*Re H and R (Child Sexual Abuse: standard of proof)* [1996] 1 FLR 80). In *Re B (Children) (Sexual Abuse: standard of proof)* [2008] UKHL 35, [2008] 2 FLR 141, Lord Hoffman said at [13]: 'I think that the time has come to say, once and for all, that there is only one civil standard of proof and that is that the fact in issue more probably occurred than not'; see also the dicta of Lady Hale in the same case at [70].

That standard of proof applies in financial remedy proceedings to disputed issues of fact (see eg *R v B* [2017] EWFC 33 at [80], per Moor J) and in private law proceedings (eg *Re A and B (Children: 'Parental Alienation') (No 5)* [2023] EWHC 1864 (Fam), [2024] 1 FLR 447 per Keehan J at [40] and *Re JK (A Child) (Domestic Abuse: Finding of Fact Hearing)* [2021] EWHC 1367 (Fam), [2022] 1 FLR 657 per Peel J at [17]).

Making ChA 1989, s 31 threshold findings to the criminal standard is inconsistent with *Re R (Children) (Care Proceedings: Fact-Finding Hearing)* [2018] EWCA Civ 198, [2018] 2 FLR 718 and *Re H-N (Children) (Domestic abuse: Finding of fact hearings)* [2021] EWCA Civ 448, [2021] 2 FLR 1116 at [73] – per Knowles J in *Re Z (Care Proceedings: Reopening of Fact-finding)* [2023] EWFC 137, [2024] 1 FLR 433.

By contrast, the court must apply the criminal standard of proof ('satisfied beyond reasonable doubt'):

- (1) in committal proceedings, so that, before finding a defendant guilty of contempt, the judge must be sure: (a) the defendant has not done what he was required to do (or has done what he was forbidden to do) and (b) it was within his power to do it (or abstain from doing it): *Re L-W (Enforcement and committal: contact); CPL v CH-W* [2010] EWCA Civ 1253, [2011] 1 FLR 1095. The criminal standard of proof will apply to applications to commit for non-payment of money in which the applicant will have to prove (a) the non-payment and (b) that the respondent had the means to pay but chose not to do so: *Symmons v Symmons* [1993] 1 FLR 317, *FD and Mohan v Mohan* [2014] 1 FLR 717, [2013] EWCA Civ 586;
- (2) in applications for enforcement orders, when determining the first question, whether a person has failed to comply with a provision of the child arrangements order (s 11J(2): burden of proof on the applicant) before then applying the civil standard of proof when addressing the second question, whether that person had a reasonable excuse for failing to comply with the provision (s 11J(3): burden of proof on the respondent).

8.71 Not speculating—Findings of fact must be based on evidence (*Devon County Council v EB and WD* [2013] EWHC 968 (Fam), Baker J). In *Re A (A child) (Fact-finding Hearing: Speculation)* [2011] EWCA Civ 12, [2011] 1 FLR 1817 Munby LJ stated: 'It is an elementary proposition that findings of fact must be based on evidence, including inferences that can properly be drawn from the evidence and not on suspicion or speculation'.

Suspicion of its own, or a real possibility of the disputed past event having occurred, do not constitute proof to the balance of probabilities (*S-B (Children)* [2009] UKSC 17, [2010] 1 FLR 1161).

8.72 Not compartmentalising evidence: 'the hermeneutical circle'—The 'hermeneutical circle' is a general principle of interpretation and understanding applied in many fields. In the context of factfinding it means:

- (1) the overall understanding of the evidence is informed by the individual details, and the individual details are informed by the overall understanding of the evidence; and
- (2) there is a continuing resonance between the details and the overall picture until the court determines the best fit of both in the light of all the evidence.

The court must take into account all the evidence without compartmentalising it and must consider each piece of evidence in the context of all the other evidence (*Re T* [2004] EWCA Civ 558, [2004] 2 FLR 838 at [33] and *Re W (a child) (Inflicted Injury) (Delay)* [2024] EWCA Civ 418, [2025] 1 FLR 173). At a fact-finding hearing, the court should not adopt a linear approach to the evidence (*Re A (A Child) (Fact-finding: Head Injury)* [2024] EWCA Civ 327, [2024] 2 FLR 709 at [42] and *Re M (a child)* [2024] EWCA Civ 1000, [2025] 1 FLR 540). In a welfare analysis, at the conclusion of care proceedings, the court should conduct a balancing exercise in which each option is evaluated to the degree of detail necessary to analyse and weigh its own internal positives and negatives and each option is then compared, side by side against the competing option or options: *Re N (A Child) (Care Order: Welfare Evaluation)* [2024] EWCA Civ 938, [2025] 1 FLR 686).

See also *Re A (a child)* [2020] EWCA Civ 1230, [2021] 1 FLR 815 at [58] per Aikens LJ, 'When a judge considers the evidence, he must take all of it into account and consider each piece of evidence in the context of all the other evidence, and, to use a metaphor, examine the canvas overall'.

This includes expert evidence. The court must weigh up the expert evidence in the context of its findings on other evidence (*A County Council v KDL* [2005] EWHC 144 (Fam), [2005] 1 FLR 851 at [39] per Charles J). It is wrong to describe the medical evidence as the canvas against which the other evidence should be considered; medical and non-medical evidence are both vital contributors in their own ways and neither has precedence over the other (*Re R (Children: Findings of Fact)* [2024] EWCA Civ 153).

8.73 Importance of the evidence of the parents and family members—The evidence of the parties, relevant family members and any other carers is of the particular importance; it is essential that the court forms a clear assessment of their credibility and reliability and affords them a full opportunity to be involved in the hearing (*Gloucestershire CC v RH* [2012] EWHC 1370 (Fam) at [42], per Baker J, as approved in *Re M (Fact-Finding Hearing: Injuries to Skull)* [2012] EWCA Civ 1710, [2013] 2 FLR 322 at [30] and applied in *Re A (A Child)* [2020] EWCA Civ 1230 [2021] 1 FLR 815 by King LJ at [32].

8.74 The fallibility of human memory and story creep—There is a line of distinguished judicial observations (eg *Gestmain v Credit Suisse* [2013] EWHC 3560 (Comm), per Legatt J at [15] and [22], which needs to be read with the speech by Popplewell LJ 'Judging Truth from Memory' (www.judiciary.uk/speech-by-lord-justice-popplewell-judging-truth-from-memory/)) that emphasises the fallibility of human memory and the need to assess witness evidence in its proper place alongside contemporaneous documentary evidence and evidence upon which doubted or probable reliance can be placed.

A proper awareness of the fallibility of memory does not relieve judges of the task of making findings of fact based on all of the evidence (see *Re A (A Child)* [2020] EWCA Civ 1230, [2021] 1 FLR 815 where that line of authority is summarised and followed).

A particular fallibility of memory arose from 'story creep' in *Lancashire County Council v C, M and F (Children: Fact-finding)* [2014] EWFC 3 where Peter Jackson J said (at [9]): 'as memory fades, a desire to iron out wrinkles may not be unnatural – a process that might, inelegantly, be described as story-creep may occur without any necessary inference of bad faith.'

8.75 Inherent probabilities—In considering whether the standard of proof has been fulfilled, the court may take into account any inherent probabilities that affect the case presented by the party bearing the burden of proof (*Re B (Children) (Care proceedings: Standard of Proof)* (CAFCASS intervening) [2008] UKHL 35, [2008] 2 FLR 141). However, that does not lead to an elevated standard of proof (*Re S-B (Children)* [2009] UKSC 17, [2010] 1 FLR 1161).

8.76 Circumstantial evidence—This is considered in the section ‘Evidence in family proceedings’ at para 8.32.

8.77 Corroboration—This is considered in the section ‘Evidence in family proceedings’ at para 8.32.

8.78 Hearsay and the evidence of children (including ABE interviews)—The statutory provisions, rules and some of the case-law relating to the evidential issues concerning hearsay are considered in the section on ‘Evidence in Family Proceedings’ above.

In fact-finding hearings particular issues arise in relation to the evidence that is provided in the form of ABE (Achieving Best Evidence) interviews and in other hearsay forms emanating from children. The relevant considerations of law were brought together by MacDonald J in *Re P (Sexual Abuse – Finding of Fact Hearing)* [2019] EWFC 27, while in *Re JB (A Child) (Sexual Abuse allegations)* [2021] EWCA Civ 46, [2021] 1 FCR 574, at [11], Baker LJ considered the previous authorities in relation to the ABE guidance, and gave a summary of the approach that should be adopted to them and any breaches of them – it is important to comply with the guidance; significant departures from it are likely to result in reduced, or in extreme cases, no weight being attached to the interview. The questioning of the child should follow the guidance, as summarised by Baker LJ (at [11]) and, underpinning the guidance, is a ‘recognition that the interviewer has to keep an open mind and that the object of the exercise is not simply to get the child to repeat on camera what she has said earlier to somebody else (per Nicholas Wall P in *TW v A City Council* [2011] EWCA Civ 17, [2011] 1 FLR 1597).

For an example of a case where the authorities about ABE interviews were considered and where there was a ‘wholesale failure to follow a number of the principles’, see *S (A Child: Findings of Fact)* [2023] EWCA Civ 346 at [33]–[40].

As to the evidence of children more generally, it has been said: (i) the greatest care needs to be taken if the risk of obtaining unreliable evidence from a child is to be minimised (*Re A and B (Children: ‘Parental Alienation’)* (No 5) [2023] EWHC 1864, [2024] 1 FLR 447); (ii) children ‘are often poor historians’ and ‘many are suggestible’ (*Re A and B* (above) and *Re B (Allegation of Sexual Abuse: Child’s Evidence)* [2006] 2 FLR 1071 at [34], [35], [37], [40], [42] and [43]); (iii) a court considering the hearsay evidence of a child must consider what the child has said, the circumstances in which it was said and the circumstances in which any alleged abuse might have occurred: *R v B County Council ex parte P* [1991] 1 FLR 470 at page 478 and *A and B (Children: Parental Alienation)* (No 5) (above).

8.79 Role of experts in fact-finding hearings—The statutory provisions and requirements of FPR 2010 in relation to experts are considered above at para 8.44.

In fact-finding hearings, careful attention must be paid to the opinion of experts and any departure from their recommendations explained, but those opinions have to be considered in the context of all the other evidence (*Devon County Council v EB and WD* [2013] EWHC 968 (Fam)).

The roles of the judge as the decision maker and the experts as witnesses, are different; only the judge is able to weigh up all the evidence after it has been tested in court (*A County Council v KD & L* [2005] EWHC 144 (Fam), [2005] 1 FLR 851 at [39]–[44]). The case is not decided on the basis of the expert alone (*A County Council v A Mother* [2005] EWHC Fam 31). The court should be careful to ensure that experts keep within their professional boundaries (*Re S* [2009] EWHC 2115 (Fam), [2010] 1 FLR 1560).

In approaching the evidence of an expert, the court should not forget that today’s medical certainty may be discarded by the next generation of experts and that scientific research may throw a light into corners that are at present dark; the court may conclude, on the evidence in a given case, that a medical condition or presentation has an unknown cause (*Re U (Serious Injury: Standard of Proof)*; *Re B* [2004] EWCA Civ 567, [2004] 2 FLR 263). This legal issue is considered in *A Local Authority v (1) A Mother, (2) A father, (3) L and M (Children, by their Children’s Guardian)* [2013] EWHC 1569 (Fam) and applied in *Cumbria County Council v M and F* [2014] EWHC 4886 (Fam).

8.80 Similar fact evidence—This is considered in the section ‘Evidence in family proceedings’ at para **8.53**.

8.81 Criminal law concepts including good character—As a matter of principle, it is fundamentally wrong for the family court to be drawn into an analysis of factual evidence in proceedings relating to the welfare of children based upon criminal law principles and concepts (*Re R (Children) (Import of Criminal Principles in Family Proceedings)* [2018] EWCA Civ 198, [2018] 2 FLR 718 at [82]).

The approach adopted in *Re R* applies equally to rules of evidence and procedure, such as the directions given to juries about delay and the defendant’s good character (*J, P and Q (Care Proceedings)* (above) at [67]). The direction about good character that is given to juries in criminal cases has no place in family law, although aspects of a party’s character may be relevant to the assessment of risk and propensity (*J, P and Q (Care Proceedings)* (above) at [67]–[69]).

Whilst the word rape is a word defined by law, it must be remembered that it has a separate life in ordinary language where it exists as an everyday word. These are not ‘concepts from the criminal law’, but facts which require determination. Whether the sexual act is ‘consensual’ is an important finding of fact (ie not law) which cannot logically be avoided, and which has significant consequences: *Re A (Appeal: Findings of Fact)* [2025] EWHC 1279 (Fam), [2025] 2 FLR 1021.

8.82 Lies (the ‘Lucas’ direction)—This is also considered at para **8.56**. It is not uncommon for witnesses to tell lies during an investigation and the hearing. A court must be careful to bear in mind that a witness may lie for various reasons, such as shame, misplaced loyalty, panic, fear, distress. The fact that a witness may have lied does not necessarily mean they have done what is alleged against them and the fact that the witness has lied about some matters does not mean that he or she has lied about everything: *Re JK (A Child) (Domestic Abuse: Finding of Fact Hearing)* [2021] EWHC 1367 (Fam), [2022] 1 FLR 657 at [17], based on *R v Lucas* [1981] QB 720. Further, in assessing lies, the court must treat them with a sense of proportionality and must assess their significance in the overall context of the case: *Re H (Children: Uncertain Perpetrator: Lies)* [2024] EWCA Civ 1261, [2025] 1 FLR 893.

When assessing the forensic significance of a lie or lies told by a witness, a judge must do more than merely cite the case of *R v Lucas*; they must consider the probative weight to be attached to the lies in the context of the totality of the evidence, bearing in mind the Lucas principle (*Re CK (A child: fact-finding)* [2022] EWCA Civ 952 at [46]).

8.83 Identification evidence (a ‘Turnbull direction’)—This is considered in the section ‘Evidence in family proceedings’ at para **8.55**.

8.84 Demeanour and other matters the court directly senses during a hearing—Although the demeanour of a witness in court will not be the sole criterion for judging the quality of that witness’s evidence, there is an inevitable assessment of the witness during the evidential process, and this may form part of that assessment in appropriate circumstances¹. For example, the body language and tone of voice of an alleged victim may assist the court in deciding whether they are still afraid of the other parent; the behaviour in the courtroom towards each other of parents who claim they are permanently separated may point towards a continuing relationship; and the gait, slurred speech and smell of alcohol from a witness may call into doubt new-found abstinence.

Dangers in relying on a witness’ demeanour were highlighted in *Cazalet v Abu Zafar* [2022] EWFC 119 at [46]–[47] and *Baker v Baker* [2023] EWFC 136 at [15]–[19].

¹ See Peter Jackson LJ in *Re B-M* [2021] EWCA (Civ) 1371 at [23]–[25], in which he said at [25]:

‘No judge would consider it proper to reach a conclusion about a witness’s credibility based solely on the way that he or she gives evidence, at least in any normal circumstances. The ordinary process of reasoning will draw the judge to consider a number of other matters, such as the consistency of the account with known facts, with previous accounts given by the witness, with other evidence, and with the overall probabilities. However, in a case where the facts are not likely to be primarily found in contemporaneous documents the assessment of credibility can quite properly include the impression made upon the court by the witness, with due allowance being made for the pressures that may arise from the process of giving evidence. Indeed, in family cases, where the question is not only “what happened in the past?” but also “what may happen in the future?”, a witness’s demeanour may offer important information to the court about what

sort of a person the witness truly is, and consequently whether an account of past events or future intentions is likely to be reliable.’

8.85 A ‘list of possible perpetrators’—The standard of proof for identifying a perpetrator is the balance of probabilities: *Re C (Care Proceedings: Standard of Proof)* [2008] UKHL 35, [2009] AC 11; *Re S-B (Children) (Care Proceedings: Standard of Proof)* [2009] UKSC 17, [2010] 1 AC 678.

The correct approach (*Re B (Children: Uncertain perpetrator)* [2019] 2 FLR 211, [2019] EWCA Civ 575 at [49], per Peter Jackson LJ) is:

- (i) to consider whether there is a list of people who had the opportunity to cause the injury;
- (ii) to consider whether the court can identify the perpetrator of the injury on a balance of probabilities;
- (iii) only if not should the court go on to ask in respect of each of the people on the list: ‘is there a likelihood or real possibility that each of those people, considered in turn, was the perpetrator or a perpetrator of the inflicted injury’.

The case law in this area is summarised by Baker LJ in *Re A (A child) (Fact-finding)* [2024] EWCA Civ 327, [2024] 2 FLR 709 at [46]–[48].

Inclusion on a list of those who had the opportunity to cause injury to a child is not a finding on the balance of probabilities that a person harmed a child (*Re S-B (Children) (Care Proceedings: Standard of Proof)* [2009] UKSC 17, [2010] 1 FLR 1161; *Re Z (Care Proceedings: Reopening of Fact-finding)* [2023] EWFC 137, [2024] 1 FLR 433).

Per Baker LJ in *Y, V and B (Fact Finding: Perpetrator)* [2024] EWCA Civ 1034:

‘[7] It is possible, in cases of non-accidental injury for the attributability condition in ChA 1989, s 31(2) to be satisfied without identifying the person who inflicted the injury. But it is well established that a court should, where possible, endeavour to identify the perpetrator ...

[50] ... although it is not invariably necessary for the perpetrator, or pool of possible perpetrators, of non-accidental injuries to a child to be identified for the attributability condition in section 31(2) to be satisfied, it is in most cases important for the court to do so if it can, for the reasons set out by Baroness Hale in *Re S-B (Children) (Care Proceedings: Standard of Proof)* [2009] UKSC 17, [2010] 1 AC 678.’

8.86 The meaning of failure to protect—The court must be alert to the danger of a finding that a parent failed to protect a child becoming a ‘bolt on’. Such a finding is serious and may come in many different guises (see *L-W Children* [2019] EWCA Civ 159, [2019] 2 FLR 278). It involves proof on evidence of the substantive fact against which the child was not protected, and the failure of the parent concerned to protect the child from it (see eg *J, P and Q (Care Proceedings)* [2024] EWCA Civ 22). Further, it has to be recollected that nearly all parents will be imperfect in one way or another and that there are degrees of failure to protect (*Re J (A Child)* [2015] EWCA Civ 222).

8.87 The meaning of ‘domestic abuse’ and ‘controlling/coercive behaviour’—‘Domestic abuse’ has a lengthy statutory definition: see DAA 202, s 1 (see para **2.508**) and FPR 2010 PD12J, para 2A (see para **3.658**) (which is very similar but not identical).

The Serious Crime Act 2015, s 76 defines ‘controlling or coercive behaviour’ for the purposes of criminal law. However, see above **Criminal law concepts including good character**.

‘Coercive behaviour’ and ‘controlling behaviour’ are defined in FPR 2010, PD12J, para 3 as follows:

“‘coercive behaviour’ means an act or a pattern of acts of assault, threats, humiliation and intimidation or other abuse that is used to harm, punish, or frighten the victim;

“‘controlling behaviour’ means an act or pattern of acts designed to make a person subordinate and/or dependent by isolating them from sources of support, exploiting their resources and capacities for personal gain, depriving them of the means needed for independence, resistance and escape and regulating their everyday behaviour;’

Within family proceedings a tight, overly formulaic analysis may ultimately obfuscate rather than illuminate such behaviour. What requires to be factored into the process is the recognition of the insidious scope and manner of controlling or coercive behaviour as a form of domestic abuse: *Hayden J in F v M* [2021] EWFC 4 (at [109]):

‘The emphasis in Section 76 of the Serious Crime Act 2015, is on “repetition” and “continuous engagement” in patterns of behaviour which are controlling and coercive. Behaviour, it seems

to me, requires, logically and by definition, more than a single act. The wording of FPD 2010 12J is therefore potentially misleading in so far as it appears to contemplate establishing behaviour by reference to “an act or a pattern of acts”. Key to assessing abuse in the context of coercive control is recognising that the significance of individual acts may only be understood properly within the context of wider behaviour. I emphasise it is the behaviour and not simply the repetition of individual acts which reveals the real objectives of the perpetrator and thus the true nature of the abuse.’

8.88 The meaning of sexual abuse—The term ‘sexual abuse’ features in ChA 1989, s 31(9) as part of the definition of ‘ill-treatment’ but without further definition.

In *Re P (Sexual Abuse: Finding of Fact Hearing)* [2019] EWFC 27 MacDonald J referred to the DfE definition of sexual abuse:

‘Sexual abuse: Involves forcing or enticing a child or young person to take part in sexual activities, not necessarily involving a high level of violence, whether or not the child is aware of what is happening. The activities may involve physical contact, including assault by penetration (for example, rape or oral sex) or non-penetrative acts such as masturbation, kissing, rubbing, and touching outside of clothing. They may also include non-contact activities, such as involving children in looking at, or in the production of, sexual images, watching sexual activities, encouraging children to behave in sexually inappropriate ways, or grooming a child in preparation for abuse. Sexual abuse can take place online, and technology can be used to facilitate offline abuse’.

In *Re O (Description of Sexual Abuse)* [2024] EWCA Civ 126, [2024] 2 FLR 96 the court referred to the NSPCC (May 2023) definition of sexual abuse: ‘Child sexual abuse (CSA) is when a child is forced or persuaded to take part in sexual activities. This may involve physical contact or non-contact activities and can happen online or offline’.

Although judges may use the term, they need to be alive to the risk that the label ‘sexual abuse’ may be misunderstood by the lay parties, by the professionals in the case, and/or by those outside of this process who may nonetheless be told of it; they should use descriptions that they consider appropriate to describe their findings and to convey their nature and relative gravity (*Re O (Description of Sexual Abuse)* (above)).

8.89 Research material—Where research material is placed before the court, it must be ‘properly part of the evidence’ that is considered by the expert witnesses in a case, if reliance is to be placed upon it. Further, if research material is to be relied upon by a judge in a way that departs from the opinions expressed by an expert, the parties and their legal representatives must be given an opportunity to make submissions about that departure and the judge must place any research material within an analysis of the totality of the evidence, as part of the holistic overview (*Re D (Fact-Finding: Research Literature)* [2024] EWCA Civ 663, [2025] 1 FLR 6).

8.90 Disclosure of findings to third parties—Where an issue arises as to whether findings made by a family court should be disclosed to another statutory body ‘[i]t remains important that barriers are not erected between the family court and fitness to practise procedures created by statute ... Furthermore, it continues to be desirable for the various agencies concerned with the welfare of children to co-operate with each other, including not only social workers but also allied medical and healthcare professionals such as doctors and dentists’: *General Dental Council v KK* [2024] EWHC 3053 (Fam), [2025] 2 FLR 449 and *Re Z (Disclosure to Social Work England: Findings of Domestic Abuse)* [2023] EWHC 447 (Fam), [2023] 2 FLR 995.

8.91 Risk assessment—In assessing a risk of future harm, the court should ask itself a series of questions which need to be tailored to the individual facts of each case, such as:

- (1) what is the type of harm that may arise?
- (2) What is the likelihood of it arising?
- (3) What would be the severity of the consequences for the child if it arose?
- (4) Can the chances of harm happening be reduced or the consequences be mitigated?: *Re F (A Child: Placement Order: Proportionality)* [2018] EWCA Civ 2761.

Subsequent cases have identified other questions that should have been considered, on the facts of those cases, in relation to the risk of future harm: *L-G (Children: Risk Assessment)* [2025] EWCA Civ 60 and *Re T (Children: Risk Assessment)* [2025] EWCA Civ 93, [2025] 2 FLR 263.

8.92 Costs—Although there is a general practice of not awarding costs against a party in proceedings relating to children, the court may still make such orders in exceptional circumstances. Such circumstances include cases in which a party has been guilty of reprehensible or unreasonable behaviour in relation to the proceedings. This practice applies equally in public law and private law proceedings, and irrespective of whether a party is legally aided. Nor is there any difference in principle between fact-finding hearings and other hearings. The court can make costs orders at any time: FPR 2010, r 28.1; *E (Children: Costs)* [2025] EWCA Civ 183, [2025] 2 FLR 141 in which the mother was ordered to pay one half of the father's costs of private law proceedings, excluding any costs of the father's representation at any hearing in which no order for costs had been made (the order not to be enforced without leave of the family court).

3 When to hold a fact-finding hearing in public law proceedings

8.93 The principles that a court should apply when deciding whether to hold a public-law fact-finding hearing are summarised by MacDonald J in *Royal Borough of Kensington and Chelsea v NM*, PR [2024] EWFC 48 at [54]:

- (i) The law on whether to hold such a hearing is now well-settled.
- (ii) The decision on the issue is one of case management. It is one of the most important case-management decisions to be taken in proceedings under ChA 1989, Pt IV.
- (iii) The question falls to be resolved by reference to the factors identified in *Oxfordshire CC v DP, RS and BS* [2005] EWHC 1593 (Fam), [2005] 1 FLR 1031. Those factors are set out below. They should be approached flexibly and by reference to the over-riding objective in FPR 2010, r 1.1 (*Re H-D-H (Children)*) [2021] EWCA Civ 1192, [2022] 1 FLR 454).
- (iv) Whilst it is for the Local Authority to decide whether to bring proceedings under ChA 1989, Pt IV, once those proceedings are before the court, it is for the court to decide which issues require determination (*Re W (Care Proceedings: Functions of Court and Local Authority)* [2013] EWCA Civ 1227, [2014] 2 FLR 431).
- (v) When engaged in case management, the court has the range of powers that are set out in FPR 2010, r 4.1. That includes the power in r 4.1(3)(j) to 'direct a separate hearing of any issue', the power under r 4.1(3)(l) to 'exclude an issue from consideration' and the power under r 4.1(3)(o) to 'take any step or make any order for the purpose of managing the case and furthering the overriding objective.'
- (vi) One of the functions of case management is to reduce delay within proceedings. Sections 1(2) and 32 of the ChA 1989 are directed to that end.

The factors identified in *Oxfordshire CC v DP, RS and BS* [2005] EWHC 1593 (Fam), [2005] 1 FLR 1031 are:

- (a) the interests of the child (which are relevant but not paramount);
- (b) the time that the investigation will take;
- (c) the likely cost to public funds;
- (d) the evidential result;
- (e) the necessity or otherwise of the investigation;
- (f) the relevance of the potential result of the investigation to the future care plans for the child;
- (g) the impact of any fact-finding process upon the other parties;
- (h) the prospects of a fair trial on the issue;
- (i) the justice of the case.

The Court of Appeal has reiterated that these represent the definitive metric against which the question of whether a fact-finding hearing should be determined (*Re H-D-H (Children)* (above) and *Re H-W (Care proceedings: Further Fact-Finding Hearing)* [2023] EWCA Civ 149, [2023] 2 FLR 171). It is imperative that judges conduct a proportionality analysis by reference to the factors identified in *Oxfordshire CC v DP, RS and BS* and *Re H-D-H*. The complications that can arise when deciding whether to hold a fact-finding hearing can be seen in *Re G (A Child: Scope of Fact-finding)* [2025] EWCA Civ 1044, where the court was itself divided in its opinion as to whether there should be a fact-finding hearing (Baker LJ concluding, in a judgment dissenting from the majority, that there should be).

There is the following additional guidance within the case-law:

From *Re H-D-H* [2021] EWCA Civ 1192, [2022] 1 FLR 454 at [22]:

- ‘(i) When considering *the welfare of the child*, the significance to the individual child of knowing the truth can be considered, as can the effect on the child’s welfare of an allegation being investigated or not.
- (ii) *The likely cost to public funds* can extend to the expenditure of court resources and their diversion from other cases.
- (iii) *The time that the investigation will take* allows the court to take account of the nature of the evidence. For example, an incident that has been recorded electronically may be swifter to prove than one that relies on contested witness evidence or circumstantial argument.
- (iv) *The evidential result* may relate not only to the case before the court but also to other existing or likely future cases in which a finding one way or the other is likely to be of importance. The public interest in the identification of perpetrators of child abuse can also be considered.
- (v) The relevance of the potential result of the investigation to the future care plans for the child should be seen in the light of the s 31(3B) obligation on the court to consider the impact of harm on the child and the way in which his or her resulting needs are to be met.
- (vi) *The impact of any fact-finding process upon the other parties* can also take account of the costs for the local authority, even if it is the party seeking the investigation, in terms of resources and professional time that might be devoted to other children.
- (vii) *The prospects of a fair trial* may also encompass the advantages of a trial now over a trial at a possibly distant and unpredictable future date.
- (viii) *The justice of the case* gives the court the opportunity to stand back and ensure that all matters relevant to the overriding objective have been taken into account. One such matter is whether the contested allegation may be investigated within criminal proceedings. Another is the extent of any gulf between the factual basis for the court’s decision with or without a fact-finding hearing. The level of seriousness of the disputed allegation may inform this assessment. As I have said, the court must ask itself whether its process will do justice to the reality of the case.’

From *Re HW (Care proceedings: Further Fact-Finding Hearing)* [2023] EWCA Civ 149, [2023] 2 FLR 171 at [28]:

‘No additional guidance is required beyond what is set out in *A County Council v DP, RS, BS and Re H-D-H*, save in one respect. When considering the potential evidential result of a fact-finding hearing it may sometimes be appropriate for the judge to have regard to the apparent quality of the evidence. It will never be appropriate, however, to carry out a detailed evaluation, not least because the court can only make findings on the totality of the evidence and at the case management stage not all of the evidence will have been filed. Anything akin to a mini-trial of the allegations would therefore be wrong in principle and wasteful of time and resources. Although each decision will depend upon the circumstances of the case, the apparent quality of the evidence is accordingly unlikely to be a powerful factor in the overall decision unless it is clear without the need for detailed assessment that the evidence appears to be particularly strong or particularly weak.’

There is a danger in seeking to follow too closely another first instance decision which will have turned on its own facts. An example is the decision of Lieven J in *Derbyshire County Council v AA* [2022] EWHC 3404 (Fam), which is often cited by legal representatives seeking to persuade a judge not to hold a fact-finding hearing. Having considered that case, Baker LJ said: ‘It is to the statement of principles as summarised in the *Oxfordshire* case and considered and approved in *Re H-D-H* to which courts should turn when making these often difficult decisions’ (*P and E (Care Proceedings: Whether to hold fact-finding hearing)* [2024] EWCA Civ 403, [2025] 1 FLR 250).

4 When to hold a fact-finding hearing in private law proceedings

8.94 Practice Direction 12J and Practice Guidance—FPR 2010, PD12J, paras 5 and 16–20 (see paras **3.660** and **3.664** respectively) govern the considerations that should be given to the question of whether a fact-finding hearing of allegations of domestic abuse should be directed in private law proceedings.

See also the short, clear and practical guidance in ‘Fact-finding Hearings and Domestic Abuse in Private Law Children Proceedings – Guidance for Judges and Magistrates.’ That guidance, which runs to twenty-eight paragraphs and is essential reading for anyone considering this issue, is set out at para **5.160**.

8.95 Key case law—There are two governing authorities in this area: *Re H-N & Ors (Children) (Domestic abuse: Finding of fact hearings)* [2021] EWCA Civ 448, [2021] 2 FLR 1116 ('H-N') and *K v K* [2022] EWCA Civ 468, [2022] 2 FLR 1064 ('K v K').

The following main, general points may be drawn from *Re H-N* and *K v K*:

- (1) Domestic abuse is rightly afforded a high level of importance in Family procedure – *H-N* (at [4]).
- (2) Very substantial numbers of cases involving domestic abuse allegations are heard each day in the court. Given the nature of the allegations and of the proceedings, the evidence may turn on the word of one parent against the other. The stakes may be very high. If the court decides that an abusive allegation has not been sufficiently proved, the court must assess future risk on the basis that the event did not take place. Incorrect findings, or rejection of allegations, will have major consequences for the parents and for the children concerned – *H-N* (at [6]).
- (3) It is of critical importance to identify at an early stage the issues that need to be determined, whether a fact-finding hearing is necessary and, if so, what form the hearing should take – *H-N* (at [8]).
- (4) The judgment in *H-N* (at [19] and [20]) referred to the 'Harm Panel Report', 'Assessing Risk of Harm to Children and Parents in Private Law Children Cases', published by the Ministry of Justice in June 2020, which considers an investigative and problem-solving approach based on an open enquiry into what is happening for the child and family.
- (5) There is an ever-increasing understanding about the impact on children of living in an abusive environment – *H-N* (at [24]).
- (6) There is an increasing recognition of the need to focus on patterns of behaviours when considering allegations of domestic abuse, as reflected in PD12J – *H-N* (at [25] and [31]).
- (7) It is possible to be a victim of coercive or controlling behaviour without ever sustaining a physical injury – *H-N* (at [27]).
- (8) The concept of coercive and/or controlling behaviour is central to the definition of domestic abuse – *H-N* (at [29]). The judgment of Hayden J in *F v M* [2021] EWFC 4 is essential reading for family judiciary as an example of the definition of, and approach to, coercive or controlling behaviour – *H-N* (at [30]).
- (9) Not all directive, assertive, stubborn or selfish behaviour will amount to 'abuse' in the context of proceedings concerning the welfare of children. The court endorsed the approach taken by Peter Jackson LJ in *Re L (Relocation: Second Appeal)* [2017] EWCA (Civ) 2121, [2018] 2 FLR 608 at [61]: 'few relationships lack instances of bad behaviour on the part of one or both parties at some time ...'.

The two judgments of *H-N* and *K v K* contain the following specific points:

- (1) Fact-finding hearings are not free-standing. If the fact-finding hearing is to be justified in the first place or continued thereafter, the court must be able to identify how any alleged abusive behaviour is, or may be, relevant to the determination of the issues between the parties as to the future arrangements for the children – *K v K* (at [65]). It is 'not the case' that in every case where there are allegations of domestic abuse there must be a fact-finding hearing. The duty of the court is limited to determining only those factual matters which are likely to be relevant to deciding whether to make a child arrangements order and, if so, in what terms – *K v K* (at [67]).
- (2) What is said in the judgments about patterns of behaviour applies to all forms of abuse, not just coercive or controlling behaviour – *H-N* (at [31]).
- (3) The court must apply the provisions of PD12J; of particular importance are paragraphs 5, 16 and 17 and the over-riding objective in Part 1 – *H-N* (at [35] and [36] respectively).
- (4) In deciding whether to hold a fact-finding hearing, there is a need for 'procedural proportionality' – *H-N* (at [36]).

'It is the responsibility of the individual judge or bench of magistrates in each case to set a proportionate timetable and to maintain control of the court process where it has been determined that a fact-finding hearing is necessary. It is, however, our expectation that, in cases where an alleged pattern of coercive and/or controlling behaviour falls for determination, and the court has made that issue its primary focus, the need to determine a range of subsidiary date-specific factual allegations will cease to be "necessary" (unless any particular factual allegation is so serious that it justifies determination irrespective of any alleged pattern of coercive and/or controlling behaviour)' – *H-N* (at [56]).

- (5) The proper approach to deciding if a fact-finding hearing is necessary is as follows – *H-N* (at [37]):
- ‘(i) The first stage is to consider the nature of the allegations and the extent to which it is likely to be relevant in deciding whether to make a child arrangements order and if so in what terms (PD12J.5).
 - (ii) In deciding whether to have a finding of fact hearing the court should have in mind its purpose (PD12J.16) which is, in broad terms, to provide a basis of assessment of risk and therefore the impact of the alleged abuse on the child or children.
 - (iii) Careful consideration must be given to PD12J.17 as to whether it is “necessary” to have a finding of fact hearing, including whether there is other evidence which provides a sufficient factual basis to proceed and importantly, the relevance to the issue before the court if the allegations are proved.
 - (iv) Under PD12J.17(h) the court has to consider whether a separate fact-finding hearing is “necessary and proportionate”. The court and the parties should have in mind as part of its analysis both the overriding objective and the President’s Guidance as set out in “The Road Ahead.”’
- (6) There are the following pointers as to when a fact-finding hearing should be ordered – *H-N* (at [58]):
- ‘(a) PD12J (as its title demonstrates) is focussed upon “domestic violence and harm” in the context of “child arrangements and contact orders”; it does not establish a free-standing jurisdiction to determine domestic abuse allegations which are not relevant to the determination of the child welfare issues that are before the court;
 - (b) PD12J, paragraph 16 is plain that a fact-finding hearing on the issue of domestic abuse should be established when such a hearing is “necessary” in order to:
 - (i) Provide a factual basis for any welfare report or other assessment;
 - (ii) Provide a basis for an accurate assessment of risk;
 - (iii) Consider any final welfare-based order(s) in relation to child arrangements; or
 - (iv) Consider the need for a domestic abuse-related activity.
 - (c) Where a fact-finding hearing is “necessary”, only those allegations which are “necessary” to support the above processes should be listed for determination;
 - (d) In every case where domestic abuse is alleged, both parents should be asked to describe in short terms (either in a written statement or orally at a preliminary hearing) the overall experience of being in a relationship with each other.’
- (7) In relation to whether a fact-finding hearing is necessary, *H-N* is authority for the proposition that there is a requirement to consider an overarching issue of coercive or controlling behaviour, where to do so is necessary for the determination of a dispute relating to a child’s welfare. It is not a requirement for the court to determine every single subsidiary factual allegation that may also be raised. The court only decides individual factual allegations where it is strictly necessary to do so in addition to determining the wider issue of coercive or controlling behaviour when that, itself, is necessary – *K v K* (at [70]).
- (8) The suggestion by Cafcass that, rather than move straight from gatekeeping to a fact-finding hearing without social work input, there should be an enhanced safeguarding assessment by Cafcass prior to the case being listed for a second gatekeeping appointment, is worthy of further consideration – *H-N* (at [39]).
- (9) The process involved in *H-N* has ‘undoubtedly confirmed the need to move away from using Scott Schedules’: *H-N* (at [49]) and note that at [48] there is a discussion about the alternatives to such schedules.
- (10) Coercive or controlling behaviour is likely to be the primary question in many cases where there are allegations of domestic abuse irrespective of whether there are other, more specific, factual allegations to be determined – *H-N* (at [51]). The approach of regarding coercive or controlling incidents as being ‘in the past,’ and therefore of little or no relevance in terms of establishing a risk of future harm should be considered to be ‘old-fashioned and no longer acceptable’ – *H-N* (at [52]) and *K v K* (at [68]).
- (11) Concepts and definitions of criminal law should not be imported into family law. The court reiterated the approach taken in *Re R (Children) (Care Proceedings: Fact-finding Hearing)* [2018] EWCA Civ 198, [2018] 2 FLR 718; insofar as that approach differs from the approach in *JH v MF* [2020] EWHC 86 (Fam), [2020] 2 FLR 344 the approach in *Re R* should be followed.

(12) When summarising the findings that have been made in the order of the court, it is essential that the order reflects the terms of the judgment accurately – *K v K* [85].

In *A v K (Appeal: Fact-finding: PD12J)* [2024] EWHC 1981 (Fam) at [45], Cobb J summarised the relevant principles and repeated his dicta in *Re B-B (domestic abuse: fact-finding) BY v BX* [2022] EWHC 108 (Fam), [2022] 2 FLR 725 at [13], that fact-finding in cases concerning alleged domestic abuse is almost always time-consuming and challenging for judges and magistrates; the responsibility placed on the lay and/or professional judiciary is indeed ‘weighty ... particularly when the factual issues are often complex, emotions are invariably raw and the stakes are so high’.

8.96 The decision whether to direct a fact-finding hearing—This is a matter of case management (*TRC (Father) v NS (Mother)* [2024] EWHC 80 (Fam), [2024] 2 FLR 248 and *X v Y* [2023] EWHC 3170 (Fam)). The court has a duty to consider whether there should be a fact-finding hearing even if the parties do not raise the issue themselves (*Re O (Appeal: Duty to Consider Fact-Find)* [2024] EWHC 839 (Fam), [2024] 2 FLR 1026 (per Henke J)).

8.97 Interim contact—This must be considered by applying FPR 2010, PD12J, paras 25–27 (see para 3.667), and the issue of interim contact should not be delegated to a social worker (*T and another (Appeal: Fair Hearings: Delegation of Judicial Functions)* [2024] EWHC 2236 (Fam), per Henke J).

8.98 Conduct of a fact-finding hearing—This is governed by PD12J, paras 28–31 (see para 3.668). The court will consider the provisions of FPR 2010, Part 3A and the DAA 2021 as to conduct of the hearing, the participation in the proceedings and the giving of evidence by vulnerable persons. The overriding objective in FPR 2010, r 1.1 must also be applied.

5 Re-opening a fact-finding decision

8.99 See *Re J (Children: Reopening Findings of Fact)* [2023] EWCA Civ 465, [2023] 2 FLR 1206 at [5]–[10]:

‘The law in relation to reopening findings of fact in children’s cases is settled. It is to be found in the decisions of this court in *Re E (Children: Reopening Findings of Fact)* [2019] EWCA Civ 1447, [2019] 1 WLR 6765 and *Re CTD (A Child) (Rehearing)* [2020] EWCA Civ 1316, [2020] 4 WLR 140. These authorities endorse the decisions of Hale J in *Re B (Minors) (Care Proceedings: Evidence)* [1997] 2 All ER 29, [1997] 1 FLR 285, [1997] 3 WLR 1 and Munby P in *Re Z (Children) (Care Proceedings: Review of Findings)* [2014] EWFC 9, [2015] 1 WLR 95.

In summary, the test to be applied upon an application to reopen a previous findings of fact has three stages. Firstly, the court considers whether it will permit any reconsideration of the earlier finding. If it is willing to do so, the second stage determines the extent of the investigations and evidence that will be considered, while the third stage is the hearing of the review itself.

In relation to the first stage: (i) the court should remind itself at the outset that the context for its decision is a balancing of important considerations of public policy favouring finality in litigation on the one hand and soundly based welfare decisions on the other; (ii) it should weigh up all relevant matters, including the need to put scarce resources to good use, the effect of delay on the child, the importance of establishing the truth, the nature and significance of the findings themselves and the quality and relevance of the further evidence; and (iii) above all, the court is bound to want to consider whether there is any reason to think that a rehearing of the issue will result in any different finding from that in the earlier trial. There must be solid grounds that the earlier findings require revisiting.

The requirement for ‘solid grounds’ is a part of the evaluation that the court must carry out. It is not a shorthand substitute for it.

In *Re W (Children: Reopening: Recusal)* [2020] EWCA Civ 1685, [2021] 2 FCR 793 at [28] I said this:

“It is rare for findings of fact to be varied. It should be emphasised that the process of reopening is only to be embarked upon where the application presents genuine new information. It is not a vehicle for litigants to cast doubt on findings that they do not like or a substitute for an appeal pursued at the time of the original decision. In *Re E* at [16] I noted that some applications will be no more than attempts to re-argue lost causes or escape

sound findings. The court will readily recognise applications that are said to be based on fresh evidence but are in reality dressed up in new ways, and it should deal with these applications swiftly and firmly.”

Re J was applied by Knowles J when she refused to direct a re-opening of findings that had been made in 2016 in *Re Z (Care Proceedings Reopening of Fact-finding); sub nom Mother v Local Authority* [2023] EWFC 137, [2024] 1 FLR 433 and stated (at [24]) that a decision about whether to reopen findings is highly case-sensitive and requires analysis of the underlying evidence.

In exercising a welfare jurisdiction, where the process is quasi-inquisitorial rather than adversarial, an appellate court may adopt a more flexible approach to the admission of fresh evidence: *Re T (Fresh Evidence on Appeal)* [2024] EWCA Civ 1384, [2025] 1 FLR 781. In *Re S (Children) (New Evidence)* [2024] EWCA Civ 1265, [2020] 1 FLR 162 it was held to be plainly in the interests of justice (and also consistent with the test in *Ladd v Marshall* [1954] 1 WLR 1489) for the mother on an appeal against a summary return order to be able to adduce new evidence that had been disclosed to her by the Home Office.

6 Appeals against findings of fact

8.100 There is limited scope for appealing against findings of fact made by a court: *Re Z (A child)* [2025] EWCA Civ 594, *Re K and D (Children: Sexual Abuse Findings)* [2025] EWCA Civ 263, [2025] 2 FLR 758 and *Re W (Appeal: Fact-Finding)* [2024] EWCA Civ 1590. In *Volpi v Volpi* [2022] EWCA Civ 464, [2022] 4 WLR 48, Lewison LJ (at [2]) set out the principles as follows:

‘The appeal is therefore an appeal on a pure question of fact. The approach of an appeal court to that kind of appeal is a well-trodden path. It is unnecessary to refer in detail to the many cases that have discussed it; but the following principles are well-settled:

- (i) An appeal court should not interfere with the trial judge’s conclusions on primary facts unless it is satisfied that he was plainly wrong.
- (ii) The adverb “plainly” does not refer to the degree of confidence felt by the appeal court that it would not have reached the same conclusion as the trial judge. It does not matter, with whatever degree of certainty, that the appeal court considers that it would have reached a different conclusion. What matters is whether the decision under appeal is one that no reasonable judge could have reached.
- (iii) An appeal court is bound, unless there is compelling reason to the contrary, to assume that the trial judge has taken the whole of the evidence into his consideration. The mere fact that a judge does not mention a specific piece of evidence does not mean that he overlooked it.
- (iv) The validity of the findings of fact made by a trial judge is not aptly tested by considering whether the judgment presents a balanced account of the evidence. The trial judge must of course consider all the material evidence (although it need not all be discussed in his judgment). The weight which he gives to it is however pre-eminently a matter for him.
- (v) An appeal court can therefore set aside a judgment on the basis that the judge failed to give the evidence a balanced consideration only if the judge’s conclusion was rationally insupportable.
- (vi) Reasons for a judgment will always be capable of having been better expressed. An appeal court should not subject a judgment to narrow textual analysis. Nor should it be picked over or construed as though it was a piece of legislation or a contract.’

The principles in *Volpi* apply equally to appeals against findings of fact that have been made in financial remedy proceedings: *Awolowo v Awolowo* [2025] EWCA Civ 641 (finding that husband owed £1.6m to his brother’s company held to be wrong, leading to an order for a re-trial).

In *Re H-N & Ors (Children) (Domestic abuse: Finding of fact hearings)* [2021] EWCA Civ 448, [2021] 2 FLR 1116 the court expressed the principles in these terms:

‘[75] Although the House of Lords decision in *Pigłowska v Pigłowski* [1999] 2 FLR 763 concerned an appeal against the court’s exercise of discretion in matrimonial finance proceedings, much of Lord Hoffmann’s description of the general approach to appeals is expressly applicable to fact-finding cases:

“In *G v G (minors: custody appeal)* [1985] 1 WLR 647, 651–652, this House, in the speech of Lord Fraser of Tullybelton, approved the following statement of principle by Asquith LJ in *Bellenden (formerly Satterthwaite) v Satterthwaite* [1948] 1 All ER 343, 345, which concerned an order for maintenance for a divorced wife:

‘It is, of course, not enough for the wife to establish that this court might, or would, have made a different order. We are here concerned with a judicial discretion, and it is of the essence of such a discretion that on the same evidence two different minds might reach widely different decisions without either being appealable. It is only where the decision exceeds the generous ambit within which reasonable disagreement is possible, and is, in fact, plainly wrong, that an appellate body is entitled to interfere.’

This passage has been cited and approved many times but some of its implications need to be explained. First, the appellate court must bear in mind the advantage which the first instance judge had in seeing the parties and the other witnesses. This is well understood on questions of credibility and findings of primary fact. But it goes further than that. It applies also to the judge’s evaluation of those facts. If I may quote what I said in *Biogen Inc v Medeva Ltd* [1997] RPC 1:

‘The need for appellate caution in reversing the trial judge’s evaluation of the facts is based upon much more solid grounds than professional courtesy. It is because specific findings of fact, even by the most meticulous judge, are inherently an incomplete statement of the impression which was made upon him by the primary evidence. His expressed findings are always surrounded by a penumbra of imprecision as to emphasis, relative weight, minor qualification and nuance ... of which time and language do not permit exact expression, but which may play an important part in the judge’s overall evaluation.’

The second point follows from the first. The exigencies of daily court room life are such that reasons for judgment will always be capable of having been better expressed. This is particularly true of an unreserved judgment such as the judge gave in this case but also of a reserved judgment based upon notes, such as was given by the District Judge.

These reasons should be read on the assumption that, unless he has demonstrated the contrary, the judge knew how he should perform his functions and which matters he should take into account.”

[76] In hearing and determining the present appeals we have endeavoured to apply the well-established understanding and approach described in *Pigłowska*, and elsewhere. Full allowance is to be afforded to the trial judge who has heard the evidence and been exposed to the parties and the detail of each case over an extended period.’

8.101 When considering whether to appeal a decision, a party may wish to seek clarification of the first instance judgment. However, seeking clarification of a judgment should not be used as an attempt to re-open the case. Further, there is a line to be drawn between cases where further clarification may be necessary to further explain matters contained in the judgment and cases where the judgment is so deficient that a rehearing has to be ordered: *Re M (a child)* [2024] EWCA Civ 1000, [2025] 1 FLR 540 and *Re O (A Child) (Judgment: Adequacy of Reasons)* [2021] EWCA Civ 149, [2021] 2 FCR 766 at [61].